



Department of State

Secretary of State

RULES CONCERNING BINGO AND RAFFLE GAMES

8 CCR 1505-2

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Rule 1. Definitions

- 1.1 "Bingo" means the two types of bingo authorized in section 24-21-602(1), C.R.S., unless either specifically indicated or the context requires otherwise in these rules.
- 1.2 "Bucket raffle" means an event where a licensee conducts many small raffles at the same time. Ticket purchasers may deposit one or more of the purchased tickets into various receptacles from which a winner or winners will be drawn for a prize or prizes.
- 1.3 "Call fulfillment center" means a registered company that employs telephone operators to answer calls and provide data-entry services.
- 1.4 "Concealed face card" means a non-reusable bingo card containing five rows of five squares with a free center space, one number preprinted on each of the remaining 24 spaces, and the letters "B I N G O" printed in order over the five columns. No part of the card's face is detectable or discernible until the card is purchased and opened by the player.
- 1.5 "Double action game" means a bingo game that uses a bingo card containing the letters "B I N G O" placed horizontally over a five-by-five matrix of squares with the center square blank, where each of the other squares contains two numbers in the range of one to 75.
- 1.6 "Face" means a bingo card.
- 1.7 "Flare" means a piece of heavy paper stock or other material accompanying a pull tab deal that shows at minimum the following about the matching deal:
 - 1.7.1 The name and form number of the game;
 - 1.7.2 The manufacturer name or logo;
 - 1.7.3 The number of tickets in the deal and the cost per play; and

- 1.7.4 The prize structure, including the number of winning tickets by denomination and their respective winning symbol combinations.
- 1.8 “House rules” means the licensee’s rules governing the conduct of games, consistent with the Colorado constitution, the Bingo and Raffles Law, and these rules.
- 1.9 “Licensed premises” means the premises owned, leased by, or controlled by a licensee and used for games of chance, and that are not leased to other licensees for the conduct of games of chance.
- 1.10 “Master board” means the rack in which a bingo ball is placed after it is taken from the receptacle. If a master board is electronically connected to a lighted display board with an electronic random number generator that calls numbers, then the lighted display board is the master board.
- 1.11 “Pack” means a collation of disposable paper bingo cards, including strip bingo cards, or sheets.
- 1.12 “Pre-draw concealed face game” means a bingo game in which a designated number of balls, objects, or numbers are drawn or randomly generated in the presence of at least ten players before the purchase of the cards. Players purchase concealed face cards after the designated number of balls, objects, or numbers is drawn or randomly generated. The licensee announces the resumption of the game and continues to draw balls or generate numbers until a player signals a bingo.
- 1.13 “Progressive pull tab” means a game consisting of one or more seal pull tab deals with identical form numbers that offers a cumulative or carryover jackpot prize. The prize structure for a progressive pull tab game is predetermined by the game’s manufacturer. The structure includes a cumulative jackpot prize, to which each deal of the game in which the jackpot prize is not won contributes a pre-designated amount.
- 1.14 “Progressive jackpot (“Progressive”) bingo game” means a bingo game of the specific type authorized by section 24-21-602(1)(b), C.R.S., in which a prize amount is carried over to the subsequent game in the progression if no bingo is achieved within a specified number of balls drawn and called. Progressive bingo games cannot be played with strip bingo cards.
- 1.15 “Remuneration” means a payment given to a member of an organization in return for that member’s participation in the operation of charitable gaming.
- 1.15.1 “Remuneration” includes, but is not limited to:
- (a) Cash;
 - (b) Reduced-price or free packs;

- (c) Reduced dues based on the number of volunteer hours that the member works in the operation of charitable gaming;
- (d) Meal vouchers;
- (e) Reimbursement of travel expenses when other members who do not participate in the operation of charitable gaming are not reimbursed for travel;
- (f) Non-competitive scholarships where the selection of the scholarship recipient is based on the amount of time volunteered in charitable gaming operations, whether by the recipient or a member of the organization related to the recipient; or
- (g) Tips received from a player as a result of the member's participation in charitable gaming operations.

1.15.2 "Remuneration" does not include food offered to volunteers in accordance with section 24-21-617(6), C.R.S., when the retail value of the food does not exceed \$10.00 per volunteer-duty shift.

- 1.16 "Renewal application" means an application for bingo-raffle license renewal filed by a currently licensed, qualified organization.
- 1.17 "Seal pull tab" means a pull tab game that offers one or more prizes by means of a flare or a jackpot card that is part of a pull tab deal. The flare or jackpot card includes a section bearing a tab or tabs that must be torn or broken apart to reveal a winning combination or combinations.
- 1.18 "Strip bingo card" means a paper strip of up to five connected paper bingo cards with each card matching the requirements in section 24-21-602(40.5), C.R.S.
- 1.19 "Stub" means the portion of a raffle ticket kept by the licensee.
- 1.20 "Ticket" means a slip of paper or any other object that is discrete from every other object sold, which shows that the person to whom it is issued, or the current holder, is entitled to some right or privilege as indicated by the licensee.

Rule 2. Bingo-Raffle Licensees

2.1 Application

2.1.1 Initial application

- (a) An applicant seeking a bingo-raffle license must submit a complete application, using the form prescribed by the Secretary of State, in addition to the following:

- (1) The application fee;
- (2) A list of all members of the organization, and all members of auxiliary and affiliate organizations who will participate in the operation of games of chance. If the organization has a large number of members, the applicant may submit a copy of the entire membership;
- (3) The names, addresses, and titles of all officers and directors of the organization; and
- (4) Proof that the organization has functioned for at least five years immediately preceding the application date and that the organization has had members throughout this period. Proof of existence consists of:
 - (i) Articles of incorporation dated more than five years from the date of application, stating that the organization has members; and
 - (ii) Copies of at least one bank statement per year for the five-year period; or
 - (iii) Copies of minutes from at least one general membership meeting per year for the five-year period.
- (b) The organization must qualify as one of the following types of organizations: religious, charitable, labor, fraternal, educational, volunteer fire, or veterans. The Secretary of State may require submission of supporting documentation.
- (c) The 45 day period for approval or rejection of the application will start upon notification that the Secretary of State received the required information outlined in Rule 2.1.1(a).

2.1.2 Renewal application. To renew a bingo-raffle license, a licensee must submit a complete renewal application, using the form prescribed by the Secretary of State, in addition to the following:

- (a) The items listed in Rule 2.1.1(a)(1)-(3); and
- (b) If the organization changed names in the last year, evidence of the name change. For entities organized under Colorado law, articles of amendment, articles of merger, or other documentation of changes filed with the Secretary of State qualify as evidence of the name change.

- 2.1.3 Board-only organizations without members. An organization that does not have members but is managed by a board of directors or trustees may apply for a bingo-raffle license but only in the name of the board of directors. Only board members may participate in the operation of charitable gaming.
- 2.2 A licensee may, as a membership condition or qualification, require all of its active members to assist with its charitable gaming operations. Members are considered bona fide volunteer workers when operating or assisting with the licensee's bingo-raffle activities if:
 - 2.2.1 The licensee does not provide any remuneration, including but not limited to, any fee, expense, travel, tuition, or other credit that is based on the amount of service or assistance rendered or time spent by a member in the course of operating any licensed bingo-raffle activity; and
 - 2.2.2 The licensee does not offer or give to any member an option to pay money or donate anything of value to the licensee nor offer or give a reduction in any member's benefits, privileges, or powers as an alternative to assistance with bingo-raffle activities.
- 2.3 Games managers
 - 2.3.1 A licensee may not conduct any bingo, raffle, or other game of chance unless one of its designated games managers holds a current, valid games manager certificate issued by the Secretary of State.
 - (a) The Secretary of State may issue a games manager certificate to any individual who has successfully completed a games manager training program and passed a test.
 - (b) The Secretary of State may issue games manager certificates that are valid for the management of all licensed bingo-raffle activities or may issue a limited certificate valid only for licensed raffles.
 - (c) Each games manager must execute a games manager's oath on a form prescribed by the Secretary of State.
 - (d) A games manager certificate is valid for a period of four years from the date of issuance.
 - 2.3.2 The designated games manager must be continuously present during and for at least 30 minutes after a raffle drawing, a bingo occasion, or a bingo occasion-related pull tab game.
- 2.4 Materials and notices that a licensee must post

- 2.4.1 Constitution, statutes and rules. Each licensee must keep a current copy of the bingo-raffle constitutional provisions, the Bingo and Raffles Law, and rules at the location and during the time that an activity is held. The licensee must show the law and rules to any person on demand.
- (a) Before the start of the first bingo game, the licensee must inform the players in attendance, by posting or announcement, that the players may obtain copies of the Bingo and Raffles Law and rules from the Secretary of State's office. The notice must include the Secretary of State's address, phone number, and email address.
 - (b) The licensee must post a sign stating that the games manager has a copy of the Bingo and Raffles Law and rules available for inspection. The licensee must use at least 12-point font and post the sign in a conspicuous location.
 - (c) The licensee must post any material as may be required by the Secretary of State from time to time.
- 2.4.2 License. A licensee must post a copy of the license for all players to see until the conclusion of the occasion.
- 2.4.3 Occasion rules. Each licensee must post a sign, in a conspicuous location and in at least 12-point font, that includes the following information:
- (a) All house rules in effect during that occasion;
 - (b) That the games manager is the final authority in the event of a dispute; and
 - (c) The procedure for determining refunds and the amount of the refund in the event of a power failure.
- 2.4.4 Prize information
- (a) At the beginning of each occasion, the licensee must post the number and amount of cash prizes and how the prizes may be won, including the cost to players. The licensee must use at least 12-point font and post the information in a conspicuous location.
 - (b) The licensee must either display the available merchandise prizes or post a list and complete description of the prizes and how the prizes may be won, including the cost to players. If the licensee designates an alternative cash prize in the case of multiple bingo winners, the licensee must post details about the alternative prize in accordance with Rule 2.4.4(a).

- (c) If the licensee offers prize payouts on the basis of number of players or gross amount of sales, the licensee must conspicuously post a statement to that effect.
- 2.4.5 Notice of cancellation of the bingo occasion. A licensee may only cancel a previously scheduled occasion by posting a notice of cancellation at the location of the scheduled game at least one hour before the scheduled beginning of the occasion. The licensee must use at least 12-point font and post the notice in a conspicuous location.
 - (a) For occasions played at commercial bingo facilities, the scheduled beginning of the occasion is the occasion start time stated in the rental agreement.
 - (b) For occasions played at facilities owned by the licensee or used without charge, the start time is the time the licensee normally admits players into the facility.
- 2.5 A licensee may presell tickets in accordance with section 24-21-617(16), C.R.S., as follows:
 - 2.5.1 Preselling is limited to the non-electronic sale, not more than fourteen days in advance of a bingo gaming event, of a ticket evidencing a person's right to enter the event; and
 - 2.5.2 A licensee may not presell or authorize reserving a:
 - (a) "Card," as defined in section 24-21-602(7), C.R.S.;
 - (b) "Pull tab," as used in section 24-21-602(36), C.R.S.;
 - (c) "Strip bingo card," as defined in Rule 1.18; or
 - (d) Specific seat.

Rule 3. Bingo Games

3.1 General conduct of bingo games

- 3.1.1 Bingo game. A bingo game starts when the first numbered object, ball or number is selected at random or randomly generated by machine, and called. The game continues until all the objects or balls have been returned to the receptacle or the machine has been cleared. A game may have two or more parts with different winning patterns for each part, if the total amount of prizes offered or given for all parts of one game does not exceed, in amount or value, the maximum prize that may be offered or given in a single game of bingo.

- 3.1.2 Authorized equipment and cards. A licensee must keep authorized equipment and cards, including all bingo-related items, in good repair and sound working condition. The Secretary of State may order, in writing, the immediate repair or replacement of any equipment, cards, or related items if they are found to be defective.
- (a) A licensee may not use balls with creases, holes or other damage during a bingo game.
 - (b) Balls used during bingo games must be in the master board before each occasion, and at least one player must verify that all balls are present immediately before the first game of the occasion. Licensees that use electronic random number generators must ensure that all numbers on the lighted board can be illuminated.
 - (c) Once a ball is removed from the receptacle, it may not be returned until the conclusion of that game.
 - (d) A licensee must select balls one at a time.
- 3.1.3 Call and display of balls. A caller must draw a ball from the receptacle and immediately display the letter and number on the ball to the players. The caller must loudly and clearly announce the letter and number on the ball so that all players can hear. The caller must make the announcement twice before drawing the next ball. The ball is not official until it has been properly called.
- (a) If more than one room is used, the receptacle and the caller must be in the room with the greatest number of players.
 - (b) The caller may use a camera and monitor to display the letter and number. If the caller uses a monitor, the licensee must post a sign by each monitor that reads: "Ball on TV is not official until called."
- 3.1.4 Master board. The master board is the only official scorer unless the licensee is using a random number generator, in which case a lighted display board may serve as the official scorer.
- (a) If a lighted display is used, the letter and number of the called ball must be lit immediately after the ball is called.
 - (b) If the caller discovers that the wrong letter or number was called, the caller must announce: "I am reading the correct number, please correct your card or sheet." The caller must then correct the master board and the lighted display, if applicable, before continuing with the game.

3.1.5 Closing a bingo game. Each bingo game must close in accordance with the following procedure:

- (a) The licensee must stop the game after "Bingo" is signaled by a player or a worker. A player is responsible for ensuring that a signaled "Bingo" is acknowledged by a floor worker, the bingo caller, or both.
- (b) The caller may not call the next ball removed from the machine or otherwise selected until the signaled bingo is verified or invalidated. If a bingo has been signaled and a worker acknowledges the player but the caller was unaware and continues to call the next ball, the effect of the preceding ball is suspended pending the verification or invalidation of the last bingo. If the signaled bingo is verified, the caller must return the ball to the machine unless the verified bingo is part of a multi-part or continuing game.
- (c) The last number called does not need to be part of the signaled bingo, unless the licensee has conspicuously posted a bingo occasion rule with this requirement.
- (d) When a player or worker signals "Bingo", a worker on the floor must place the card, sheet, or electronic bingo aid device in front of at least one other player at a different table to confirm the bingo.
- (e) The worker must call the numbers of the winning combination to the caller or, in the case of a coverall or blackout bingo, the caller may announce the numbers that have not been called, unless an electronic bingo number verification device is used to verify the bingo.
- (f) If an electronic verification device is used to invalidate a signaled bingo, the worker on the floor must announce the numbers of the winning combination so the caller can check the numbers against those actually called.
- (g) The caller must then ask the players two times: "Are there any other bingos?" If no player answers, the caller must announce "This game is completed."

3.1.6 Multiple bingo winners

- (a) If multiple bingos are announced and verified and the prize is a cash prize, the licensee must divide the prize for that game or game part so that each verified bingo receives the appropriate amount, regardless of the number or identity of players involved. If a prize is divided, the licensee may round up the prize amount

given to any player holding a verified bingo only to the nearest dollar.

- (b) If the licensee is offering a merchandise prize, the licensee may designate an alternative cash prize in the case that more than one person achieves a valid bingo. The alternative cash prize must be equal to the current retail value of the merchandise prize, and information on the alternative prize must be posted in accordance with Rule 2.4.4.

3.1.7 Workers

- (a) No individual who works or assists at a bingo occasion may play bingo or purchase or play any pull tabs at the occasion which that individual works.
- (b) A licensee must file with the Secretary of State a revised list of members who will work any bingo-raffle activities if the list submitted with the licensee's application has changed due to new members.
- (c) An individual may not work or assist in the operation of licensed activities unless that individual is a member of the licensee or of an auxiliary as defined in Rule 3.1.8 and the licensee has provided a list of members containing that individual's name to the Secretary of State.
- (d) An individual working or assisting at any bingo-raffle activity must present photo identification upon request of the Secretary of State.

3.1.8 Auxiliaries

- (a) Auxiliaries of licensee. An association or organization is an auxiliary of a licensee if:
 - (1) It is subsidiary to the licensee;
 - (2) It is subordinate to the licensee;
 - (3) Its primary purpose is to support and assist, particularly by donations and volunteer services, the licensee; and
 - (4) It is constituted, chartered, governed, or otherwise formally recognized as an adjunct by the licensee.
- (b) Licensee auxiliary of another organization. A licensee is an auxiliary of an association or organization if:

- (1) The licensee is subsidiary to the association or organization;
 - (2) The licensee is subordinate to the association or organization;
 - (3) The primary purpose of the licensee is to support and assist, particularly by donations and volunteer services, the association or organization to which it is subsidiary; and
 - (4) The licensee is constituted, chartered, governed, or otherwise formally recognized as an adjunct by the association or organization to which it is subsidiary.
- (c) Auxiliary affiliated with licensee. An association or organization is affiliated with a licensee and the association or organization and the licensee are auxiliaries of another organization or association if:
 - (1) The licensee and the affiliated organization are both subsidiary to an association or organization;
 - (2) The licensee and the affiliated organization are both subordinate to the association or organization;
 - (3) The primary purpose of the licensee and the affiliated organization is to support and assist, particularly by donations and volunteer services, the association or organization to which they both are subsidiary; and
 - (4) Both the licensee and the affiliate are constituted, chartered, governed, or otherwise formally recognized as adjuncts by the association or organization to which they are subsidiary.

3.1.9 Security personnel

- (a) Security personnel must wear a badge or uniform.
- (b) Security personnel, whether volunteer or paid, may not play or participate in the operation of any bingo-raffle activities.

3.1.10 Number of games allowed. No licensee may hold, operate, or conduct more than 220 bingo occasions in any calendar year.

- (a) A licensee may play one type or both types of bingo authorized by section 24-21-602(1), C.R.S., during a single occasion.
- (b) A licensee must not play both types of bingo at the same time during an occasion. A licensee must complete playing one type of

bingo before starting to play another type of bingo during an occasion.

- (c) Each individual occasion counts towards the total 220 limit, regardless of whether the licensee plays a single type of bingo or both types during an occasion.

3.1.11 Prohibition on saving seats. A specific seat may only be reserved to provide a reasonable accommodation for a player with a disability.

3.2 Progressive jackpot bingo games. The following requirements apply specifically to progressive bingo games.

3.2.1 Required postings. In addition to any postings otherwise required by these rules, a licensee that conducts a progressive bingo game must also post, a sign in at least 12-point font stating:

- (a) The amount of the progressive jackpot at the beginning of the bingo occasion;
- (b) The percentage of gross sales of progressive cards that is contributed to the jackpot and whether the contribution amount is added to the jackpot during the present occasion or during the next occasion;
- (c) The price and description, including color and design, of the cards for the progressive bingo game;
- (d) The bingo pattern or number arrangement a player must complete to win the progressive jackpot prize, together with a clear diagram of the number arrangement, if any pattern other than a full card ("blackout" or "coverall") is required to win;
- (e) The maximum number of calls in which a player must complete the required pattern in order to win the progressive jackpot prize;
- (f) The date, time, and location of the occasion at which the next game in the progression will be conducted if the jackpot is not awarded;
- (g) The amount of the regular game prize if the licensee elects to continue a progressive bingo game as a regular game when the progressive jackpot is not won; and
- (h) If the licensee is operating a progressive bingo game and is withholding 10% of the gross sales of progressive cards as a secondary jackpot, a statement to that effect.

3.2.2 Number of progressive bingo games allowed. A licensee may not conduct more than three progressive bingo games simultaneously, except that a licensee that conducts a members-only bingo occasion may conduct successive games of a progression during a single bingo occasion.

3.2.3 Method of play

- (a) A licensee may start a single game of progressive bingo, in an amount not to exceed \$500 or the amount of the secondary jackpot from a prior progression, whichever is greater. A progressive bingo game is won when a previously designated arrangement of numbers or spaces on a card or sheet is covered within a previously designated number of objects or balls drawn.
- (b) If the game is not won within the drawing of the previously designated number of objects or balls, the licensee must replay the game at the same location using the previously designated arrangement of numbers or spaces, until the game is won.
- (c) On the second and subsequent occasions, the jackpot amount increases by a percentage of the gross proceeds, not greater than 70%, collected from the sale of progressive bingo cards or sheets during that occasion or on the prior occasion. If a licensee is conducting a progressive bingo game with a secondary jackpot, 10% of the gross proceeds collected from the sale of progressive bingo cards or sheets at that occasion or the prior occasion must be set aside and segregated from the jackpot amount in the bingo-raffle account.
- (d) A progressive jackpot may not exceed \$15,000. Upon reaching \$15,000, the licensee must award the jackpot to the player completing the designated pattern regardless of the number of objects or balls called. If the jackpot reaches \$15,000, the licensee must award the jackpot on that or the following occasion.
- (e) A licensee may impose by house rule a progressive jackpot maximum below the \$15,000 maximum ceiling. Upon reaching the self-imposed maximum, the licensee must award the jackpot to the player completing the designated pattern regardless of the number of objects or balls called. When the maximum is reached, the licensee may choose to stop contributing the set percentage of the proceeds to the jackpot (hard cap) or continue to contribute the same percentage until the jackpot prize is won (soft cap). The licensee must award the jackpot at the occasion during which the maximum was reached or at the following occasion. The licensee must post notice of self-imposed caps in accordance with Rule 3.2.1.

- 3.2.4 Members-only occasions. A licensee must restrict a members-only occasion to bona fide members of the licensee, accompanying spouses, and guests of bona fide members. The public may not access the premises where members-only bingo is conducted.
- 3.2.5 Successive bingo occasions. Once a progressive bingo game begins at a public bingo occasion, it must continue at each successive bingo occasion of the licensee at the same location until a player wins the jackpot. If a progressive is started at a members-only occasion, successive progressive bingo games for that jackpot must occur at successive members-only occasions.
- 3.2.6 Card type. The licensee must use the same type of progressive bingo game card throughout all games in a progression.
- 3.2.7 Bingo pattern. The licensee must require the same bingo pattern or number arrangement to win the progressive jackpot prize throughout all games in a progression.
- 3.2.8 Number of balls called during successive occasions. For each successive game in a progression, the number of balls called may remain the same or increase.
- 3.2.9 Percentage added to the jackpot. For each successive game in a progression, the licensee must not change the percentage of gross proceeds added to the jackpot or the timing of when the amount is added.
- 3.2.10 Pre-game announcements. Immediately before drawing the first ball for any progressive bingo game, the caller must clearly announce the maximum number of balls to be called in which a player must complete the pattern or number arrangement required to win the progressive jackpot prize, the jackpot prize amount, the card description, and the date and time of the next occasion if the jackpot prize is not awarded.
- 3.2.11 No winner of progressive. If no player wins a progressive jackpot in the designated number of balls called, the entire jackpot prize amount, without deduction for consolation prizes, will carry over to the next game in the progression. After the designated number of balls is called, the licensee may either proceed to its next regular bingo game or continue the current game as its next regular game. If the game is continued as a regular game, the licensee must publicly announce the start of the regular bingo game. The pattern or arrangement required to win may not change. The prize amount is subject to the limitations in these rules.
- 3.2.12 Winner of progressive. The caller, a floor worker, and a player other than the winning player must verify a winning card by the manufacturer's identification number, series number, and balls called.

3.2.13 Conditions affecting the award of the final progressive bingo jackpot prize

- (a) If the licensee plans, expects, or otherwise foresees the occurrence of an event listed in (1), (2), or (3) below, the licensee must ensure that it can still determine a winner and award the jackpot prize and secondary jackpot prize, if any, before the occurrence of the event on the licensee's last authorized bingo occasion at the location where the progression was started, regardless of the number of balls called:
 - (1) Permanent termination of licensee's operations;
 - (2) Permanent termination of licensee's operations at a particular location; or
 - (3) Loss of license through expiration, nonrenewal, suspension, revocation, or surrendering.
- (b) If an event in Rule 3.2.13(a)(1)–(3) occurs without the licensee's foreknowledge before the date of the last authorized bingo occasion, the licensee must contact the Secretary of State for approval of a means of determining a winner and awarding any jackpot prize.

3.2.14 Inability to conduct occasion at regular licensed premises. If a licensee cannot conduct the next game in the progression at the location where the progression started, the licensee must post a notice on the premises where the last game in the progression was conducted announcing the date, time, and location of the next game in the progression. If known at the time, the caller must make this announcement at the conclusion of the progressive bingo game before the change in location.

3.2.15 Multiple locations. If a licensee regularly conducts bingo occasions at least weekly at each of two licensed commercial bingo facilities, the licensee may offer and continue one progressive bingo progression at each facility as long as all games in a single progression are conducted at the location where the progression began, except where the provisions of Rules 3.2.13 or 3.2.14 apply.

3.3 Disputed games

3.3.1 If the licensee discovers verifiable problems with the bingo balls, equipment, or operation of the equipment, the games manager must settle the dispute in the following manner:

- (a) Discovered before start of next game. If a problem is discovered before the start of the next game and if the error affected the outcome of the previous game, then the licensee must void and

replay the previous game during the same occasion at no cost to players.

- (b) Discovered after occasion. If a problem is discovered after a bingo occasion is completed, then no games will be replayed.
- (c) Void game. If a game is voided and the number of bingo cards that each player was playing during the voided game can be determined, then each player must receive that same number of bingo cards for the replay. If the number of bingo cards played cannot be determined for all players, the licensee must give each player an equal number of bingo cards.
- (d) Mechanical defect of electronic bingo aid device. If the licensee discovers or is advised by a player that the player's electronic bingo aid device malfunctioned during a game, the licensee is not required to suspend the calling of new balls or numbers until the player replaces the malfunctioning device.
- (e) Mechanical failure of electronic bingo system. If the licensee discovers or is advised by a player that the computer system controlling radio frequency signal transmission to electronic bingo aid devices has failed, the games manager must either:
 - (1) Instruct players using electronic bingo aid devices to manually daub the numbers of the balls called;
 - (2) Provide packs or sheets to players using electronic bingo aid devices and continue the occasion if the failure of the bingo aid system does not render the blower and master board inoperative; or
 - (3) Terminate the occasion and refund all or a portion of the pack and sheet sales and rental of electronic bingo aid devices.
- (f) Player has no right to prize. If the licensee discovers after the start of another game that a winner does not have the right to claim a previous game's prize, the licensee must replay the disputed game.
- (g) Prize money payment in disputed game. In a disputed game, the licensee may not pay any prize money until the dispute is resolved in accordance with Rule 3.
- (h) Payment exceeds occasion limit. If prize payment exceeds the maximum prize limit permitted by these rules, the licensee must note the cause of the over-payment in the game records and corresponding financial report for that time period. The Secretary of

State may consider repeated or excessive overpayments of this nature a violation of these rules.

- (i) Loss of electrical power. If electrical power is lost during an occasion, the games manager must wait a minimum of 30 minutes, but no more than one hour, before terminating an occasion. Reimbursement for games not played or for the rental of electronic bingo aid devices will be as set forth in the occasion rules posted before the game.
- (j) Secretary of State. While investigating disputed prizes, the Secretary of State may instruct a licensee to pay a disputed prize if the preponderance of the evidence is in favor of the player.

3.3.2 Games manager's log. The games manager must keep a written log of all disputed games. The entries must include the occasion date, the game played, a short description of the dispute, the names and addresses of players involved in the dispute if the dispute involves a called bingo, and the resolution determined by the games manager.

3.4 Multiple bingo occasions. A licensee may conduct multiple bingo occasions on the same day, if:

- 3.4.1 The licensee concludes all games of chance from the first occasion and completes all player-related activities, including, but not limited to, the purchase, opening, and redemption of pull tabs, before the end of the occasion.
- 3.4.2 The licensee does not begin the next occasion for 15 minutes after the conclusion of the previous occasion, or until the final accounting for games of bingo played and pull tabs sold is completed and the books are closed for all of the first occasion activities, whichever comes later.
- 3.4.3 The licensee does not offer to sell pull tabs or other raffle tickets after an occasion concludes and before the next occasion begins.
- 3.4.4 The licensee does not continue activities from an occasion during the next occasion, and does not offer to sell, distribute or reserve any cards, sheets, tickets (except as authorized by section 24-21-617(16), C.R.S., and Rule 2.5), or chances for the next occasion during the previous occasion or during the period between the two occasions.

Rule 4. Sale and use of Bingo Cards, Packs, and Sheets

4.1 Sales

4.1.1 Player payment method. A licensee may not extend credit to a player.

- (a) When accepting payment, the licensee must:
 - (1) Collect the consideration for playing a game of chance in full, in advance, by check, cash, or debit or credit card.
 - (2) Directly deposit all proceeds into the licensee's segregated checking or savings account. The licensee may not commingle proceeds with funds in a general account or other account. [Section 24-21-622(3)(a), C.R.S.]
 - (b) A licensee accepts all risks and losses associated with credit and debit card payment cancellations and returned checks. A licensee may not subtract these losses from its gross proceeds.
 - (c) A licensee may pay fees to a check guarantee service or debt collection firm for recovery of bad checks or cancelled credit charges from the licensee's segregated checking or savings account.
- 4.1.2 Premises only sales. All sales of cards, packs, and sheets must take place on the licensed premises during the bingo occasion.
- 4.1.3 Set price. A licensee:
- (a) Must sell all cards, packs, and sheets at a set price;
 - (b) May offer discounts on the basis of criteria available to all players, such as quantity purchased;
 - (c) Must set a price for the purchase, lease, or use of an electronic bingo aid device and that price must not change during the bingo occasion;
 - (d) Must charge identical fees for electronic and non-electronic bingo card faces; and
 - (e) Must post the price of each card, pack, or sheet, including discounts offered, and the charge, if any, for the purchase, lease, or use of each electronic bingo aid device, during the occasion, and before players may purchase items.
- 4.1.4 Sales of individual sheets and cards. At all bingo occasions where individual disposable cards, including strip bingo cards, or sheets are sold, the following procedures apply:
- (a) The licensee must issue individual disposable cards or sheets and a change fund to the workers. The licensee must record the exact

number of disposable cards or sheets issued using the form prescribed by the Secretary of State.

- (b) After the cards or sheets for a game are sold, the games manager or other designated individual must count the amount on hand, subtract the change fund, and compare cards or sheets sold against the money received.
- (c) The licensee must record and retain the exact number of cards or sheets that are removed from inventory, sold, and returned to inventory using the form prescribed by the Secretary of State.
- (d) Sellers of individual disposable cards or sheets may not use proceeds from sales to pay prizes.
- (e) A licensee cannot use a device to dispense individual cards, sheets, or packs to players. Device includes any type of mechanical, nonelectronic, electronic, or electromechanical machine or apparatus.

4.1.5 Progressive bingo cards and sheets. The following procedures and requirements, in addition to those for bingo operations generally, apply to the sale and use of progressive bingo cards and sheets:

- (a) The licensee must sell only disposable paper cards and must only lease electronic bingo aid devices where card faces are distinguishable by a color or design that the licensee does not use for any other game.
- (b) Each card or face sold for a progressive bingo game must contain five rows of five squares with 24 preprinted numbers, or 48 preprinted numbers in the case of double action games, from the range of 1-75, a free center space, and the letters B I N G O printed in order over the five columns.
- (c) A licensee must determine a set card price before the first game in a progression. Discounts, free cards or faces, price changes, and variable pricing are prohibited.
- (d) A licensee must sell progressive bingo cards before the drawing of the first number for the game, except that, if the progressive bingo game is a pre-draw concealed face game, the licensee may sell cards after the first drawing of numbers and before the game resumes.
- (e) A licensee must sell and account for progressive bingo cards separately from other cards, sheets, or packs sold or used at a bingo occasion. A licensee may, by house rule, make purchase of a

pack or door card a prerequisite for purchase of a progressive bingo card.

4.2 Use

4.2.1 Packs. A licensee must collate each pack sold for use at a bingo occasion from a series of consecutively numbered sheets, and each sheet must contain its individual consecutive series number and the identification number assigned by the manufacturer to that series. Nothing in this rule requires a licensee to sell packs in any particular order.

4.2.2 Tally cards. A licensee must provide a tally card or cash receipt to anyone who purchases cards or packs at the door. At a minimum, the tally card or cash receipt must show the date of purchase and the total number of cards or packs purchased. A licensee must only award a prize when the purchaser provides the tally card or cash receipt.

4.2.3 Manufacturer's identification number. Before starting any game using disposable sheets or packs, the bingo caller must have the manufacturer's identification number and/or card number and the series number of the set of cards sheets or packs offered for sale for that particular occasion. When a player completes a bingo, the worker on the floor checking the bingo must read the manufacturer's identification number and/or card number and the series number of each winning sheet. Payment may not be made unless both numbers were among those offered for sale for that game.

4.3 Concealed face cards. At all bingo occasions where pre-draw concealed face cards are sold or used, the following procedures, in addition to those applicable to the sale and use of bingo cards generally, apply:

4.3.1 All pre-draw concealed face cards must be conspicuously identified before sale or transfer to any player so that the concealed face card may not be played at any occasion other than the one at which the card was sold or transferred.

4.3.2 A licensee must sell all pre-draw concealed face cards for a uniform price, except that a licensee may permit players to trade one previously purchased card for one new one with the purchase of an additional card.

4.3.3 A licensee that allows pre-draw concealed face card trade-ins must maintain two sets of cards for each pre-draw concealed face game. One set is the original set and is a different color from the second set, which is the trade-in set. Players may purchase cards only from the original set, and may only trade for cards in the trade-in set.

4.3.4 A licensee that allows pre-draw concealed face card trade-ins must mark or otherwise deface all returned cards.

- 4.4 Cash shortages. A licensee must notify the Secretary of State within 72 hours if, at the end of the bingo occasion or a bingo occasion related pull tab game, the cash counted is short by \$30 or more.

Rule 5. Sale and use of Pull Tabs

5.1 Pull tabs

- 5.1.1 Price. A licensee may not sell a pull tab ticket for a price different than the price stated on the deal's flare.
- 5.1.2 Pull tab construction. A licensee may not sell a pull tab ticket unless it has a pull tab or seal to be opened by the purchaser.
- 5.1.3 Reservation of pull tabs. A licensee may not reserve pull tabs for any person.
- 5.1.4 Prohibition against information to players. No person selling pull tabs or managing or working at any bingo game or other place where pull tabs are sold may state, imply, or in any way indicate to the purchaser the number or type of tickets that have been redeemed or that remain in the container.
- 5.1.5 Defective pull tabs. A licensee may not permit the display, sale, or operation of a defective pull tab.
- (a) The following are types of defective pull tabs:
- (1) A pull tab that is marked, defaced, tampered with, or otherwise placed in a condition that may deceive the public;
- (2) A series or deal of pull tabs that consists of more than one serial number or ticket name; and
- (3) A pull tab that contains printer or manufacturer mistakes or misstatements that adversely affect the gross receipts and/or profit of the pull tab series or deal.
- (b) The licensee must immediately remove a defective pull tab deal or series from display and refund the purchase price of all presented winning tickets and all unopened tickets in the players' possession.
- (c) The licensee must notify the Secretary of State in writing within 72 hours of discovering a defective series or deal of pull tabs.
- (d) The licensee must return the defective pull tabs in the licensee's possession, including all returned, redeemed, and unopened tickets, to the manufacturer no earlier than the 30th day after

discovery or the inspection of the defective deal or series by the Secretary of State, whichever comes first.

- 5.1.6 No commingling. A licensee may not commingle pull tab deals or display, or sell a commingled deal. A commingled series or deal of pull tabs is one containing two or more serial numbers of the same form number.
- 5.1.7 Identical form and serial numbers. A licensee may not knowingly obtain or allow a deal of pull tabs, or portion thereof, with the same serial number and form number as another deal of pull tabs, or portion thereof, in the possession or on the premises of the licensee.
- 5.1.8 Removal of deal from play. A licensee may not remove any deal or series of pull tab tickets or any unsold portion thereof from display or sale after the first ticket from the deal or series is sold unless the Secretary of State or any law enforcement authority orders the removal or when the deal is unsalable.
 - (a) A ticket or portion of a pull tab deal or series is unsalable if it was displayed and openly offered throughout the duration of at least two consecutive bingo occasions at the same location. Pull tabs at bar and clubrooms are unsalable if they were displayed and offered for sale for a two-week period without any pull tab tickets from that deal or series being sold.
 - (b) The licensee must keep any unsold or unsalable pull tab tickets unopened for a period of six months following the end of the quarter in which the tickets were removed from sale unless the pull tabs were removed from sale because of defects.
 - (c) The licensee must destroy, after the time specified in Rule 5.1.8(b), all pull tabs that were removed from sale.
- 5.1.9 Defacing winning pull tabs. Before the end of the bingo occasion, the licensee must ensure that the winning combination of every winning pull tab ticket is defaced so that the winning ticket combination is identifiable but cannot be altered or used again.
 - (a) A licensee that conducts pull tabs only on its premises must deface the winning pull tab tickets daily.
 - (b) The licensee must keep all redeemed winning tickets of \$20 or more and all opened flares and sign-up sheets for seal pull tabs for six months following the end of the quarter in which the tickets were redeemed.
- 5.1.10 Paying pull tab prizes

- (a) The licensee may not redeem a ticket from a seal or pull tab for any other prize than the prize on the flare for the symbol combination on the winning ticket.
- (b) The licensee must award a prize only upon presentation, verification, and redemption of a ticket showing a winning combination, except when the deal of pull tabs is a last sale deal as designated by the manufacturer of the pull tab deal.
- (c) If pull tab tickets are sold at a bar or clubroom, the licensee may maintain a separate cash fund in a secure container on the premises to track proceeds and pay out pull tab prizes. This cash fund may not exceed \$2,000.

5.2 Seal pull tab operations

5.2.1 Number of deals in play. A licensee may not operate, sell, or put into play more than one seal pull tab deal of the same game name, form number, and serial number at one time.

5.2.2 Flare. The licensee must post the flare for the deal with the deal's serial number at the location of the seal game. The flare must be posted out of reach but fully visible to any player, and must contain a correct and accurate record of all holders of redeemed tickets that offer a chance on the seal tab prizes, as well as the potential winning combination of each ticket redeemed.

5.2.3 Hold tickets. The licensee must deface and return to the purchaser those tickets redeemed for a chance to win the seal pull tab prize.

5.2.4 Sign-up sheet. The licensee must maintain a separate list of redeemed ticket holders' addresses to contact them if they are not present when the winning combinations are revealed.

5.2.5 Small deals

- (a) The licensee is not required to maintain a list of names and addresses of those winners entitled to a chance to win the seal pull tab prize if the game consists of 600 or fewer tickets and is reasonably anticipated to sell out in the course of a single bingo occasion or in one day at a licensee's bar or club room.
- (b) Small deals, sign-up sheet required. The licensee must prepare a complete and accurate sign-up sheet and address record for any small deal pull tab game that does not sell out as anticipated in a single occasion or day.

- 5.2.6 Opening seal tab. A player who is eligible to win the seal tab prize must break or tear open the seal tab for the deal in plain view of all individuals present when tickets from a seal pull tab deal are sold or when the deal is declared unsalable.
 - 5.2.7 Announcements and postings. The licensee must announce the winning combination(s), the specific form number, the name of the game, the serial number of the deal, and the date the seal tab was opened and must post the information at the game. The licensee must record the name and license number of the licensee on the flare.
 - 5.2.8 Unsold deals. The licensee must announce and post the game name, form number, and serial number of any seal pull tab deal that is not sold out before the end of a bingo occasion or the closing time for a bar or clubroom where the deal was offered for sale. The licensee shall also announce and post the date, time, and place of the next scheduled pull tab operation and advise the players to retain potential winning tickets until the flare is opened.
 - 5.2.9 Notification of winner. If the winning ticket is not redeemed upon the opening of the seal, the licensee must, within 15 days of seal opening, send written notice to the holder of the winning ticket at the address shown on the sign-up sheet. The notification must give the game name, form number, and serial number of the deal, and state that the winner must present the winning ticket for verification to receive the prize.
 - 5.2.10 Unclaimed prizes. The licensee may retain a seal pull tab prize if the prize goes unclaimed for 15 days after sending notification to the winner.
 - 5.2.11 Redemption of pull tabs. The licensee must redeem and retain seal flare prize winning tickets in the same manner as other winning pull tab tickets.
- 5.3 Last sale pull tab operations
- 5.3.1 Upon opening a last sale deal of pull tabs for sale, a licensee must display and make available for sale all pull tabs contained in the deal. If the pull tab deal exceeds 5,000 tickets, the licensee is not required to display all pull tabs but must post a conspicuous notice upon the receptacle indicating whether all unsold tickets in the deal are contained in the receptacle.
 - 5.3.2 If the licensee uses a mechanical pull tab dispensing device, the licensee must post a conspicuous notice upon the machine indicating whether all unsold tickets in the deal are loaded in the machine.
 - 5.3.3 A licensee may sell or pay in full any pull tab deal that offers a prize for the last sale in the deal if the licensee:

- (a) Completes the forms required by the Secretary of State for last sale pull tab prizes and retains the forms for four months after the end of the quarter in which the prize was paid.
 - (b) Verifies the identification of the winner of the last sale pull tab prize, regardless of amount, including name, address, and driver's license number or government-issued identification card number. No last sale prize may be paid without such verified information.
- 5.4 Progressive pull tab operations. A licensee may conduct a progressive pull tab game if it complies with all rules and regulations concerning the sale and operation of pull tabs in general and the following specific requirements:
 - 5.4.1 Number allowed. A licensee may not offer, put into play or have in play more than one progressive pull tab deal at any time. A licensee may open the next deal in the pull tab game if a winner is not immediately discovered. The licensee must announce the winner of the deal twice and allow a reasonable amount of time for the winner to claim their prize. If no winner comes forward, the licensee must display the flare card for at least 15 days to allow time for the winner to claim their prize.
 - 5.4.2 Continuous play. Once a progressive pull tab game starts, it must continue until a jackpot winner is determined.
 - 5.4.3 Offered for play. Once a progressive pull tab game starts at a bingo occasion, a licensee must offer the game at each succeeding bingo occasion sponsored by the licensee until the jackpot is won. If a progressive pull tab game starts on the licensee's premises, the licensee must offer the game on each successive day that the premises are open. A licensee may suspend play of progressive pull tab games only while operating a pari-mutuel bingo occasion. Once the pari-mutuel occasion has ended, the progressive pull tab game must continue during the next regular bingo occasion.
 - 5.4.4 Award of prizes. A licensee must only award prizes in a progressive pull tab game in accordance with the manufacturer's predesignated prize structure for the game.
 - 5.4.5 Flare
 - (a) Format. The flare or jackpot card for each deal in a progressive pull tab game must show the amount dedicated to the progressive jackpot prize and the current total of the prize. The jackpot prize amount must be modified on the flare each time a contribution is made to the jackpot from sales of progressive pull tab tickets at the immediately preceding occasion and the sales of progressive pull tab tickets during the current occasion.

- (b) Display. The licensee must display or keep available for viewing the flare or jackpot card for each deal in a progressive pull tab game being played or that has been played during the course of a progressive pull tab game. The flare must be available for viewing at all times the game is in play until the progressive jackpot prize is won.

5.4.6 Maximum prize

- (a) The maximum jackpot prize for a progressive pull tab is \$5,000.
- (b) Once the jackpot amount reaches \$5,000, the licensee may not make any further contributions to the jackpot amount.
- (c) All proceeds from the sale of progressive pull tabs after the jackpot amount reaches \$5,000 are considered part of the bingo-raffles licensee's gross proceeds from the progressive pull tab game.
- (d) If a jackpot prize reaches \$5,000 without a winner:
 - (1) The licensee must award the prize in accordance with the manufacturer's specifications for determining a winner upon accumulation of the maximum amount; or
 - (2) If there are no specifications built into the progressive game being conducted, the game must continue in accordance with the manufacturer's specifications until the game is won. The licensee, however, may not make further contributions to the jackpot amount in accordance with Rule 5.4.6(c).

5.4.7 Conditions affecting the award of the final progressive pull tab jackpot prize

- (a) If the licensee plans, expects, or otherwise foresees the occurrence of an event listed in (1), (2), or (3) below, the licensee must ensure that it can still determine a winner and award the progressive pull tab jackpot prize before the occurrence of the event on the licensee's last authorized bingo occasion at the location where the progression was started:
 - (1) Permanent termination of licensee's operations;
 - (2) Permanent termination of licensee's operations at a particular location; or
 - (3) Loss of license through expiration, nonrenewal, suspension, revocation, or surrendering.

- (b) If an event in Rule 5.4.7(a)(1)–(3) occurs without the licensee’s foreknowledge before the date of the last authorized bingo occasion, the licensee must contact the Secretary of State for approval of a means of determining a winner and awarding any jackpot prize.
 - (c) If an event in Rule 5.4.7(a)(1)–(3) occurs without licensee’s foreknowledge before the date of the last authorized bingo occasion, the licensee must contact the Secretary of State for approval of a means of determining a winner and awarding any jackpot prize.
- 5.4.8 Serial and form numbers. The licensee may not pay a prize amount unless the serial and form numbers of the winning ticket match the serial and form numbers of a deal contributing to the jackpot amount.
- 5.4.9 Conclusion of game. A progressive pull tab game must end with the award of the cumulative jackpot prize or, if the jackpot prize is unclaimed, upon expiration of a 15-day period after the determination of the winner. If a jackpot prize is not claimed by the next day or occasion on which the licensee conducts pull tab activities, the licensee may begin a new progressive pull tab game.
- 5.4.10 Display of winner(s) and notice to winner(s). If a jackpot prize is not claimed upon the determination of a winner, a licensee shall continue to display all flares and jackpot cards for 15 days after such determination. The display must be in plain view of all players at the licensee’s bingo occasions or pull tab operations. The licensee shall also provide the winner with the notice prescribed for all winners.
- 5.4.11 Unclaimed prizes. The licensee may retain a progressive pull tab prize if the prize goes unclaimed for 15 days after a winner is determined.
- 5.5 Multiple locations. A licensee that conducts bingo occasions at two or more locations may also conduct pull tab operations at each location, if the bingo-raffle licensee uses a different deal of pull tabs at each location and does not use pull tabs with the same name, form number, and serial number at more than one location.
 - 5.5.1 Termination of operations at premises. If the licensee terminates operations at one location, the licensee must display and sell all opened pull tab deals from the terminated location with the pull tabs at one of the remaining locations.
 - 5.5.2 Records. The licensee must maintain the required records for all deals regardless of where the pull tabs were sold and must make those records available to the Secretary of State upon request at the location where the pull tabs were sold.

Rule 6. Electronic Bingo Aid Devices

6.1 Usage of electronic bingo aid devices

- 6.1.1 New usage. A licensee that intends to use any electronic bingo aid device must provide the following to the Secretary of State in writing:
- (a) The name and address of the manufacturer and the licensed Colorado supplier; and
 - (b) The make, model, and description of the electronic bingo aid device or bingo aid computer system that the licensee intends to offer.
- 6.1.2 Compatible device. A licensee must use a bingo aid device that is compatible with the type of bingo being played.
- 6.1.3 Bingo aid system. A licensee that uses a bingo aid computer system to record, track, or process any bingo transactions during a bingo occasion must use the system to record, track, and process all bingo transactions occurring during that occasion.
- 6.1.4 Use of bingo aid system without bingo aid devices. A licensee may use a bingo aid computer system at any time. A licensee must use a bingo aid computer system if players are allowed to use electronic bingo aid devices during a bingo occasion.

6.2 Required reports. A licensee that uses a bingo aid computer system must produce and attach to its daily bingo occasion records the report generated by the bingo aid computer system. The report must show at least the following information:

- 6.2.1 The reporting licensee's name;
- 6.2.2 The date and time of the bingo occasion reported;
- 6.2.3 A description of each transaction processed, including all voids and refunds, which shows:
- (a) The time the transaction took place;
 - (b) The quantity, description and price of all cards and sheets, including specials, progressives and extras that were sold, refunded or voided during the transaction;
 - (c) The charges for any electronic bingo aid device furnished in connection with the transaction;

- (d) The manufacturer's identification number (serial number) for all cards and sheets sold in conjunction with an electronic bingo aid device; and
- (e) The total number and related charges for all electronic bingo aid devices sold, leased or furnished in connection with the reported occasion.

6.3 Data backup and security

6.3.1 Data backup. At the end of an occasion, a licensee must save all transaction data and keep an electronic copy of the data for two calendar years after the occasion.

6.3.2 Data security

- (a) A licensee must not access or attempt to access a bingo aid computer system's data that does not belong to the licensee.
- (b) A licensee must protect, secure and safeguard its unique system identification from unauthorized disclosure or use. If the licensee discovers or suspects that system security has been breached or compromised, the licensee must:
 - (1) Immediately report the breach or compromise to the Secretary of State; and
 - (2) Disable access to the system and either issue new identification and passwords or stop using the system until new identification and methods of access have been provided by the manufacturer, supplier or agent.
- (c) Control of the means of access, like identification, passwords, or tokens, to the licensee's bingo aid computer system is the responsibility of designated games managers or officers. The disclosure or transfer of the means of access is strictly prohibited unless disclosure or transfer is ordered by the Secretary of State or a law enforcement authority.

6.4 Player usage

6.4.1 Single player usage. A bingo player may use only one electronic bingo aid device during an occasion.

6.4.2 Maximum number of faces. A licensee may not program an electronic bingo aid device to play more than 100 faces per bingo game.

- 6.4.3 Passive Play. The passive play of a bingo game using an electronic bingo aid device is prohibited. Players must physically enter each number called by either manually entering the number or by touching a button or a screen icon.

Rule 7. Promotions by Bingo-Raffle Licensees

- 7.1 Promotions allowed. A licensee may conduct a promotion on its own or on leased premises where no purchase is necessary to enter the contest. A licensee may charge an admission fee to enter its premises to participate in a bingo occasion separate from the promotion, but the licensee must allow anyone participating in the promotional contest to be present when the prize is awarded.
- 7.1.1 Reporting requirements. A licensee that conducts a promotion must report awarded prize information to the licensing authority in accordance with section 24-21-604(3)(c), C.R.S.
- 7.1.2 Promotion prize limits. The licensee must not offer merchandise, services, or cash that exceeds \$1,000 in value as a prize for any single promotion.
- 7.2 Relationship with landlord licensee promotions. A licensee may conduct a promotion concurrently with any promotion sponsored by a landlord licensee. If the licensee agrees to participate in the landlord licensee's promotion and agrees to pay a portion of the costs of the promotion, such costs must not exceed \$1,000.

Rule 8. Raffles

- 8.1 General requirements. Licensees that conduct raffles shall comply with the following:
- 8.1.1 Selling tickets
- (a) Except as provided in Rule 8.1.1(e), only members of the licensee may sell tickets for entry into a raffle drawing. Members must not receive remuneration for selling raffle tickets and must not sell raffle tickets while they are receiving compensation for performing regular duties for the licensee.
 - (b) A licensee must sell tickets for entry in a raffle drawing at a stated price, and each ticket must constitute a separate and equal chance to win.
 - (c) A licensee must provide any conditions that may affect the stated price of a raffle ticket to the public before the sale of the first raffle ticket. If any of the following apply, then the licensee must provide the information to the ticket purchaser at the time of sale:

- (1) The date(s) that the price of an individual ticket or group of tickets may increase or decrease;
 - (2) Any discounted price that is based on the purchase of a minimum number of tickets; and
 - (3) The method of determining the number of tickets at a set price, such as in a stretch raffle.
 - (d) A licensee may sell raffle tickets at bingo occasions if:
 - (1) The proceeds from raffle ticket sales are recorded separately from bingo sales; and
 - (2) Purchase of a raffle ticket is not conditioned on the purchase of bingo cards or faces, pull tabs, or payment of an admission fee to play bingo.
 - (e) Licensees may contract with a call fulfillment center to process raffle ticket orders if:
 - (1) The call fulfillment center only receives incoming calls from ticket-purchasers and processes ticket-purchaser information;
 - (2) The call fulfillment center does not process payments for raffle tickets and does not make outgoing calls to solicit purchases or encourage incoming callers to purchase additional raffle tickets; and
 - (3) The licensee submits a form prescribed by the Secretary of State that contains details of the agreement between the licensee and the call fulfillment center before the sale of raffle tickets through the call fulfillment center.
- 8.1.2 Format of tickets. All tickets must be discrete from every other ticket sold and may be identified by symbols, numbers, color, design or combination thereof.
- 8.1.3 Ownership of prizes. The licensee must fully own merchandise offered as a raffle prize except as provided in Rule 8.2. The raffle prize must be free of debt, lien and encumbrance before the sale of raffle tickets.
- 8.1.4 If the total retail value of the raffle prize or prizes in a single raffle exceeds \$1,000, a licensee must satisfy the following requirements:

Total Retail Value of Prizes Over \$1,000

Requirement Type	When Ticketholder's Presence is Required To Win	When Ticketholder's Presence is Not Required To Win	
		If licensee notifies winners by mail	If licensee notifies winners by online posting
Ticket Content	Print a paper ticket with the following: 1. License number; 2. Licensee name exactly as it appears on the license; 3. Date, time and place of the drawing; 4. Ticket cost; 5. Adequate description of the major prize(s) offered; 6. Date(s) when the ticket price will increase or decrease; 7. Cost if tickets purchased as a package; and 8. The word "RAFFLE."	Print a paper ticket with the following: 1. License number; 2. Licensee name exactly as it appears on the license; 3. Date, time and place of the drawing; 4. Ticket cost; 5. Adequate description of the major prize(s) offered; 6. Date(s) when the ticket price will increase or decrease; 7. Cost if tickets purchased as a package; and 8. The word "RAFFLE."	Print a paper ticket with the following: 1. License number; 2. Licensee name exactly as it appears on the license; 3. Date, time and place of the drawing; 4. Ticket cost; 5. Adequate description of the major prize(s) offered; 6. Date(s) when the ticket price will increase or decrease; 7. Cost if tickets purchased as a package; and 8. The word "RAFFLE."
	Print on each ticket a statement indicating that the ticketholder must be present to win prize.	Print on each ticket a statement indicating that the ticketholder need not be present to win prize.	Print on each ticket a statement indicating that the ticketholder need not be present to win prize.
	Print ticket stub providing for entry of ticketholder's name and mailing address if raffle tickets are sold on any day or at any location other than the day and location of the drawing.	Print ticket stub providing for entry of ticketholder's name and mailing address.	Print on each ticket the web address where the licensee will post the winning number, the period of time for which the winning number will be posted, and a phone number that ticketholders can call to verify the winning number.

Total Retail Value of Prizes Over \$1,000			
Requirement Type	When Ticketholder's Presence is Required To Win	When Ticketholder's Presence is Not Required To Win	
		If licensee notifies winners by mail	If licensee notifies winners by online posting
Pre-Raffle Filing	Before the sale of any tickets, file a voided ticket for the raffle with the Secretary of State.	Before the sale of any tickets, file a voided ticket for the raffle with the Secretary of State.	Before the sale of any tickets, file a voided ticket for the raffle with the Secretary of State.
			At least 14 calendar days before any ticket sale, submit to the Secretary of State the website address where winning ticket numbers will be posted. The website must indicate when the winning ticket numbers will be available.
Claiming Prize	Provide a reasonable amount of time, not to exceed 30 minutes, for winner(s) to claim prize(s). If winner(s) fails to claim a prize, the licensee must continue drawing tickets until the prize is claimed.	Within 30 days of the drawing, notify all winners who have not claimed their prizes by U.S. postal service certified mail, return receipt requested. The notification must indicate the prize won, a contact person's telephone number, and the time and location where the winner may claim the prize(s). If a winner fails to claim a prize within 30 days of receiving notification, the licensee may retain the prize or offer it in another raffle.	Within 24 hours of the drawing, post all winning ticket numbers and a contact phone number to the website listed on raffle tickets. The winning ticket numbers and phone number must remain posted on the website for at least 30 days after the raffle drawing.

Total Retail Value of Prizes Over \$1,000

Requirement Type	When Ticketholder's Presence is Required To Win	When Ticketholder's Presence is Not Required To Win	
		If licensee notifies winners by mail	If licensee notifies winners by online posting
	Retain all raffle ticket stubs and unsold tickets for six months following the quarter in which the raffle was held.	Retain all raffle ticket stubs and unsold tickets for six months following the quarter in which the raffle was held.	Retain all raffle ticket stubs and unsold tickets for six months following the quarter in which the raffle was held.

8.1.5 If the total retail value of the raffle prize or prizes in a single raffle is \$1,000 or less, a licensee must satisfy the following requirements:

Total Retail Value of Prizes \$1,000 and Under			
Requirement Type	When Ticketholder's Presence is Required To Win	When Ticketholder's Presence is Not Required To Win	
		If licensee notifies winners by mail	If licensee notifies winners by online posting
Ticket Content		Print ticket stub providing for entry of ticketholder's name and mailing address.	Print on each ticket the web address where the licensee will post the winning number, the period of time for which the winning number will be posted, and a phone number that ticketholders can call to verify the winning number.
Pre-Raffle Filing			At least 14 calendar days before any ticket sale, submit to the Secretary of State the website address where winning ticket numbers will be posted. The website must indicate when the winning ticket numbers will be available.
Claiming Prize	Provide a reasonable amount of time, not to exceed 30 minutes, for winner(s) to claim prize(s). If winner(s) fails to claim a prize, the license must continue drawing tickets until the	Within 30 days of the drawing, notify all winners who have not claimed their prizes by U.S. postal service certified mail, return receipt requested. The notification must indicate the prize won, a contact person's telephone number, and the time and location where the winner may	Within 24 hours of the drawing, post all winning ticket numbers and a contact phone number to the website listed on raffle tickets. The winning ticket numbers and phone number must remain posted on the website for at least 30 days after the raffle drawing.

Total Retail Value of Prizes \$1,000 and Under			
Requirement Type	When Ticketholder's Presence is Required To Win	When Ticketholder's Presence is Not Required To Win	
		If licensee notifies winners by mail	If licensee notifies winners by online posting
	prize is claimed.	claim the prize(s). If a winner fails to claim a prize within 30 days of receiving notification, the licensee may retain the prize or offer it in another raffle.	
	Retain all raffle ticket stubs and unsold tickets for six months following the quarter in which the raffle was held.	Retain all raffle ticket stubs and unsold tickets for six months following the quarter in which the raffle was held.	Retain all raffle ticket stubs and unsold tickets for six months following the quarter in which the raffle was held.

8.1.6 Cancellation. A licensee may not cancel a raffle after the first raffle ticket is sold unless the licensee demonstrates to the Secretary of State that it will provide a notice of cancellation to all ticket purchasers and refund the purchase amount to every purchaser.

8.1.7 Postponing or altering a drawing. A licensee must not alter or postpone a raffle after the first raffle ticket has been sold unless the licensee can demonstrate to the Secretary of State that purchasers of raffle tickets will not be adversely affected by a substitution of prizes or a change of time or location and that the information concerning the raffle specifically states that a purchaser need not be present at the drawing to win.

8.1.8 A licensee may not conduct more than one regular (non-progressive) raffle drawing at a bingo occasion.

8.2 Motor vehicle, real estate, or real estate under construction as a prize

8.2.1 A licensee may raffle a motor vehicle if:

- (a) The raffle ticket contains information as to whether there are any encumbrances on the motor vehicle that the winner of the raffle will be subject to, including federal, state and local income taxes; and
- (b) With respect to ownership of the motor vehicle:
 - (1) The licensee files proof of ownership of the motor vehicle with the Secretary of State; or
 - (2) A contract exists between the owner of the motor vehicle and the licensee to transfer title to the motor vehicle to the holder of the winning ticket under the following conditions:
 - (i) The licensee must maintain, during the course of the sale of raffle tickets and continuing through the date of the raffle drawing, a certificate of deposit in the amount of the purchase price of the motor vehicle described in the contract.
 - (ii) If the motor vehicle owner fails to transfer title, the licensee must use the certificate of deposit to purchase an equivalent motor vehicle for delivery to the holder of the winning ticket; and
 - (iii) Before the sale of the first raffle ticket, the licensee must submit evidence of the contract and certificate of deposit to the Secretary of State.

8.2.2 A licensee may raffle real estate, including real estate containing an existing house, if:

- (a) The raffle ticket contains information as to whether there are any encumbrances on the real estate, including any existing house, that the winner of the raffle will be subject to, including a mortgage and federal, state and local income taxes; and
- (b) With respect to ownership of the real estate, including any existing house:
 - (1) The licensee files proof of ownership (such as a real property transfer declaration); or
 - (2) A contract exists between the owner of the real estate and the licensee to transfer title to the real estate, including any existing house, to the holder of the winning ticket under the following conditions:

- (i) The licensee maintains, during the course of the sale of raffle tickets and continuing through the date of the raffle drawing, a certificate of deposit or bond in the amount of the purchase price of the real estate, including any existing house, described in the contract.
- (ii) If the owner fails to transfer ownership, the licensee must purchase equivalent real estate, including a house, for delivery to the holder of the winning ticket; and
- (iii) Before the sale of the first raffle ticket, the licensee must submit evidence of the contract and certificate of deposit or bond to the Secretary of State.

8.2.3 A licensee may raffle real estate that will include a house under construction if:

- (a) The raffle ticket contains information as to whether there are any encumbrances on the real estate that the winner of the raffle will be subject to, including a mortgage and federal, state and local income taxes; and
- (b) With respect to ownership:
 - (1) A contract exists between the owner of the real estate and the licensee to transfer title to the real estate and the house under construction to the holder of the winning ticket;
 - (2) The licensee maintains, during the course of the sale of raffle tickets and continuing through the date of the raffle drawing, a certificate of deposit or bond in the amount of the purchase price of the real estate and the house described in the contract;
 - (3) If the owner fails to transfer ownership, the licensee must purchase equivalent real estate, including an equivalent house, for delivery to the holder of the winning ticket; and
 - (4) Before the sale of the first raffle ticket, the licensee must submit evidence of the contract and certificate of deposit or bond to the Secretary of State.

8.3 Specific types of raffles

- 8.3.1 Key raffles. Licensees may conduct a key raffle where the purchaser receives a key that may open the particular prize being raffled, such as an automobile, if:
- (a) The licensee conducts a raffle where the keys are sold only to participants at an event sponsored by the licensee;
 - (b) The purchaser selects the key from a receptacle containing all of the keys being sold;
 - (c) The licensee provides a separate paper ticket to the purchaser that contains a stub with the name, address and telephone number of the purchaser and each stub sold is placed in a separate receptacle containing all stubs sold. The receptacle must be designed so that each stub has an equal chance of being drawn; and
 - (d) In the event that not all keys are sold, and none of the keys that are sold will open the prize, the licensee determines the winner by drawing a ticket stub from the receptacle containing all stubs sold.
- 8.3.2 Card raffles. A licensee may conduct a card raffle where the purchaser receives a card containing numbers, symbols, colors or a combination thereof, where one-half of the card is torn off and placed in the receptacle from which the winning card will be drawn if:
- (a) The portion of each card deposited into the receptacle is approximately the same size and shape as all other portions deposited; and
 - (b) Each card sold is distinct from every other card sold, although multiple decks of playing cards may be used if the decks are of different colors or design.
- 8.3.3 Bucket raffles
- (a) A licensee may conduct bucket raffles using theater style tickets only if the total retail value of the prizes offered for a specific receptacle in which raffle tickets are placed does not exceed \$1,000.
 - (b) If the total retail value of the prizes offered for a specific receptacle in which raffle tickets are placed exceeds \$1,000, the licensee must print a ticket conforming to Rule 8.1.4.
 - (c) The licensee must either display merchandise prizes or display descriptions of merchandise prizes offered for each receptacle.

- 8.3.4 Sporting event raffles. A licensee may conduct raffles where the winner is determined based on scores from sporting events if and only if the licensee can demonstrate to the Secretary of State that each ticket sold has an equal chance to win with every other ticket sold.
- 8.3.5 Wheel raffles. A licensee may conduct a wheel raffle where the winning ticket is determined by spinning a wheel until a pointer lands in one of the discrete segments marked on the wheel.
 - (a) The number of raffle tickets must be less than or equal to the number of discrete numbers or symbols on the wheel, and each ticket sold must match only one of the numbers or symbols on the wheel.
 - (b) If fewer tickets than the number of segments are sold, the licensee must continue to spin the wheel until there is a winner.
 - (c) A licensee may use a wheel containing symbol(s), 0, or 00 only if it offers to sell tickets for those segments.
- 8.3.6 Stretch raffles. A stretch raffle is a raffle where the number of raffle tickets purchased for a set price is determined by a specific measurement method. For example, a stretch raffle may use a raffle participant's arm span to determine how many raffle tickets may be purchased for a set price. A licensee may conduct a stretch raffle only if the same measurement method is used to determine the number of tickets for all purchasers.
- 8.4 Progressive raffles. In addition to all other applicable raffle requirements, a licensee that conducts a progressive raffle must comply with the following:
 - 8.4.1 Progressive raffle games are restricted to members-only progressive drawings and playing card progressive raffles as follows:
 - (a) Members-only progressive drawings
 - (1) Licensee members are given the opportunity to buy raffle tickets.
 - (2) At the drawing, the licensee places the names of all members or a subset of members into a pool and selects one name. The names of each member who bought a progressive raffle ticket for a specific drawing must be included in the pool for that drawing.
 - (3) If the member whose name is drawn purchased a ticket for that drawing, that member wins the raffle prize amount,

consisting of the prize money accumulated since the last winning draw.

- (4) If the member whose name is drawn did not purchase a ticket for that drawing, there is no winner and the prize amount is added to the jackpot for the next drawing.

(b) Playing card progressive raffles

- (1) A licensee may conduct a playing card progressive raffle game by selecting the winning card called the "Jackpot Prize Card" from either:

- (i) A specifically designed prepackaged game purchased from a licensed supplier which contains images of a standard deck of 52 cards or a standard deck of 52 cards plus two joker cards (for a total of 54 playing card images); or
- (ii) A standard deck of 52 cards or a standard deck of 52 cards plus two joker cards (for a total of 54 playing cards).

- (2) If using a prepackaged game:

- (i) The board must have a serial number and the licensee must retain the used board for at least six months after the final game.
- (ii) The licensee must post the Jackpot Prize Card for the raffle with the board's serial number at the location of the progressive raffle game. The licensee must post Jackpot Prize Card so that it is both out of all players' reach but also fully visible to all players.
- (iii) The licensee must break or tear open the Jackpot Prize Card's window in plain view of all individuals present.

- (3) If using a playing card deck with envelopes or other containers:

- (i) The licensee must place the cards from the deck in identical separate envelopes or other containers, one card per container, through which the card is not visible. The container must be sealed so that the licensee must tear, break, or rip a portion of the container in order to access the card.

- (ii) Before sealing cards in the containers, the games manager and at least one other licensee member must verify that all cards are present.
 - (iii) The licensee must shuffle the envelopes containing the cards before putting them on public display.
 - (iv) Once the licensee places the envelopes on display, the licensee must keep them in a locked container at all times except during drawings. Only the games manager and licensee officers are allowed access to the keys for the container.
- (4) For both methods of playing card progressive raffles:
 - (i) After selling raffle tickets, the licensee must hold a drawing with the pool containing all tickets purchased for that drawing.
 - (ii) The purchaser of the drawn ticket is given the opportunity to select one or more of the windows or envelopes. The number of windows or envelopes selected per draw must remain constant throughout the progression.
 - (iii) If the ticket purchaser selects the window or envelope containing the Jackpot Prize Card, the ticket purchaser wins the raffle prize amount, consisting of the prize money accumulated since the last winning draw.
 - (iv) If the ticket purchaser's selected window or envelope does not contain the Jackpot Prize Card, there is no winner and the prize amount is added to the jackpot for the next drawing.

8.4.2 Additional rules for both methods of playing card progressive raffles

- (a) A ticket holder must be present at the drawing in order to claim a progressive raffle prize. If the winning ticket purchaser is not present at the drawing, the licensee must continue to draw tickets until selecting a ticket purchaser who is present.
- (b) If the window or envelope selected by the drawing winner does not contain the Jackpot Prize Card, the licensee must display the selected card at all future drawings until the licensee awards the jackpot prize.

- (c) The licensee must determine the amount of the jackpot based on a percentage of gross raffle ticket sales from each raffle in the progressive sequence, not to exceed 70%.
- (d) The licensee may offer a cash consolation prize for a winning ticket purchaser that does not select the Jackpot Prize Card.
 - (1) Consolation prizes do not count against the \$15,000 maximum progressive raffle prize limit.
 - (2) Before conducting a progressive raffle offering a consolation prize, the licensee must designate the consolation prize as either a specified amount or a specified percentage of the gross proceeds collected from the sale of raffle tickets for a particular drawing.

8.4.3 The licensee may conduct a maximum of one playing card progressive raffle and one members-only progressive raffle simultaneously.

8.4.4 Progressive raffles ticket sales

- (a) If the licensee only sells progressive raffle tickets to licensee members, Rule 8.1.4 requirements do not apply.
- (b) Tickets sold for a specific drawing are void and ineligible for future drawings.
- (c) The licensee must determine ticket prices before selling progressive raffle tickets and must not change ticket prices for any drawing in that progressive sequence.

8.4.5 Progressive jackpot prizes

- (a) A progressive raffle jackpot prize must not exceed \$15,000. When the jackpot prize reaches \$15,000, the licensee must award it in the following manner:
 - (1) In a members-only drawing, the licensee must continue to draw member names until a member who purchased a ticket is drawn. The licensee must award the progressive raffle prize to that member.
 - (2) In a playing card progressive raffle, the licensee must either:
 - (i) Award the jackpot to the ticket purchaser whose ticket is first drawn after the prize limit is reached; or

- (ii) Determine the winner by drawing raffle tickets and allow ticket holders to select envelopes until a drawing winner selects the jackpot prize card.
 - (b) The licensee must retain any proceeds from raffle tickets sold after the progressive prize reaches the \$15,000 prize limit.
 - (c) A licensee may impose a progressive raffle jackpot maximum below the \$15,000 maximum set by these rules. Upon reaching the self-imposed maximum, the licensee must award the jackpot according to procedures listed in Rule 8.4.5(a). The licensee must post notice of self-imposed maximums in accordance with Rule 8.4.6.
 - (d) A licensee may seed a single progressive raffle with an amount not to exceed \$500.
- 8.4.6 Required postings. In addition to any postings otherwise required by these rules, a licensee that conducts a progressive raffle must also post a sign in at least 12-point font and in a conspicuous location stating:
- (a) The amount of the progressive raffle jackpot and any consolation prizes;
 - (b) The percentage of gross sales of progressive raffle tickets that will be contributed to the jackpot;
 - (c) If applicable, the maximum number of progressive raffle drawings without a jackpot winner or the maximum jackpot amount before the licensee will automatically award the prize according to procedures listed in Rule 8.4.5(a);
 - (d) If the jackpot is not awarded, the date, time, and location of the occasion at which the next drawing will occur; and
 - (e) In a playing card progressive raffle, the Jackpot Prize Card and the number of envelopes to be selected per drawing.
- 8.4.7 Conditions affecting the award of the final progressive raffle jackpot prize
- (a) If the licensee plans, expects, or otherwise foresees the occurrence of an event listed in (1), (2), or (3) below, the licensee must ensure that it can still determine a winner and award the progressive raffle jackpot prize before the occurrence of the event on the last posted drawing date at the location where the progression was started:
 - (1) Permanent termination of licensee's operations;

- (2) Permanent termination of licensee's operations at a particular location; or
 - (3) Loss of license through expiration, nonrenewal, suspension, revocation, or surrendering.
 - (b) If an event in Rule 8.4.7(a)(1)–(3) occurs without the licensee's foreknowledge before the date of the last posted drawing date, the licensee must contact the Secretary of State for approval of a means of determining a winner and awarding any jackpot prize(s).
- 8.5 Games not classified as raffles. The games of chance commonly known as "Animal Plop Bingo," "Golf Ball Drops," plastic or rubber "Duck Races," "Coin Flip Games," and variations of these games are not raffles as defined by section 24-21-602(38), C.R.S., and are not raffles as authorized by subsections (2) to (4) of Section 2 of Article XVIII of the Colorado Constitution. Therefore, these games of chance are not licensed or regulated by the Secretary of State. In certain circumstances, these games of chance may be considered unlawful gambling. Licensees or other organizations who wish to conduct these games should contact law enforcement authorities or legal counsel to determine how to comply with Colorado law.

Rule 9. Prize Amounts and Payment of Prizes

- 9.1 Occasion and single game prizes. As long as the total value of prizes offered during a bingo occasion, including any occasion in which both strip bingo games and traditional bingo games are played, does not exceed the statutory maximum of \$15,000 in section 24-21-618(11)(d), C.R.S., a licensee may award:
 - 9.1.1 Any amount as a prize for any single game of traditional bingo; and
 - 9.1.2 A maximum of \$1,000 for any single game of strip bingo per section 24-21-618(11)(b), C.R.S.
- 9.2 Progressive prizes
 - 9.2.1 Progressive bingo. The maximum progressive jackpot prize may not exceed \$15,000.
 - 9.2.2 Progressive pull tab games. The maximum progressive pull tab prize may not exceed \$5,000.
 - 9.2.3 Progressive raffle. The maximum progressive raffle prize may not exceed \$15,000.
- 9.3 Payment of prizes

- 9.3.1 Pull tab prize payment. Licensees must award all pull tab prizes immediately upon determination of a winner.
- 9.3.2 Time to redeem pull tab. If a ticket holder presents a pull tab ticket more than 21 days after the licensee closes the pull tab deal, the ticket is void and irredeemable except as otherwise provided in these rules and unless the licensee's house rules provide an alternative redemption deadline.
- 9.3.3 Method of payment. Licensees must award all pull tab prizes in cash, by check, or in merchandise, except that winning pull tab tickets may be exchanged for an equivalent amount in new tickets of the same deal and serial number.
 - (a) All progressive prizes in excess of \$500 must be paid by check.
 - (b) A progressive prize need not be paid immediately upon the determination of a winner if:
 - (1) The prize amount exceeds \$500;
 - (2) The prize amount is paid in full within 48 hours after the winner was declared;
 - (3) The prize amount is paid at a location and in a manner acceptable to the winner; and
 - (4) The winner is presented with a voucher or promissory note for the full amount of the jackpot prize before the end of the occasion during which the winner was declared. The licensee's games manager and one other member of the licensee must sign the voucher or promissory note. The note must state the following:
 - (i) The name and license number of the licensee;
 - (ii) The date, time, and location of verification of the winning card;
 - (iii) In the case of progressive bingo and progressive pull tabs, the manufacturer's serial and identification numbers of the winning card;
 - (iv) The identification of the winner of the prize; and
 - (v) The date, time, place and manner in which the check for the prize amount will be delivered to the winner.

Rule 10. Accounting for Receipts and Deposits

10.1 Maintenance of records

10.1.1 Retention period. Each licensee conducting charitable gaming activities must maintain records on forms prescribed or approved by the Secretary of State. These forms must cover bingo occasions, bar and club room sales and raffles. The records must be retained for a period of two years following the calendar year in which bingo, pull tabs or raffles were conducted.

10.1.2 Each licensee must record the following receipts:

- (a) Gross receipts collected for all cards, including strip bingo cards, packs and sheets sold for each occasion;
- (b) Gross receipts collected for all pull tabs sold for each occasion and in bars and clubrooms; and
- (c) Gross receipts collected for all raffle tickets sold.

10.1.3 Progressive games

- (a) All receipts from the sale of progressive games must be accounted for separately within the licensee's bingo-raffle checking or savings account created in accordance with sections 24-21-622(3), C.R.S.
- (b) All receipts from the sale of progressive games must be deposited in the licensee's bingo-raffle account by using separate deposit slips. Deposit slips for progressive bingo and progressive pull tab games must indicate the serial numbers of the progressive bingo cards sold and the serial numbers of the progressive pull tabs sold. Deposit slips for progressive raffles must contain the words "Progressive Raffle." All deposits must be made no later than the close of the business day after the occasion at which the progressive took place.
- (c) Unless the licensee starts a progressive jackpot bingo game with a secondary jackpot amount, the licensee must continuously hold an amount equal to at least the accrued progressive jackpot prize in the licensee's bingo-raffle checking or savings account for the entire duration of the progression. No part of this amount may be expended, transferred, or otherwise removed from the account before the payment of the progressive jackpot to a winner.
- (d) If the licensee has started a progressive jackpot bingo game with a secondary jackpot amount, the licensee must continuously hold an amount equal to at least the accrued primary and secondary

jackpots in the licensee's bingo-raffle checking or savings account for the entire duration of the progression. No part of this amount may be expended, transferred, or otherwise removed from the account before the payment of the progressive jackpot to a winner.

- (e) If the licensee conducts a progressive pull tab game or a progressive raffle, the licensee must maintain an amount in the bingo-raffle account sufficient to pay out the total of all prize amounts in the game.
- (f) If the licensee fails to maintain account balances in accordance with this rule or uses such balances for unlawful purposes, the failure or action is prima facie evidence of fraud.

10.2 Method of accounting

10.2.1 Accrual method. The licensee must use the accrual accounting method and must report all incurred bingo-raffle related expenses on the licensee's quarterly financial statement. The licensee must report these expenses regardless of whether the expense is paid when incurred or at a later date. The licensee must not report a payment that was reported in a previous quarter as an expense to be paid.

10.2.2 Segregated bank accounts

- (a) The licensee must indicate on forms provided by the Secretary of State, the financial institution and account numbers for all segregated bingo-raffle checking or savings accounts.
- (b) The licensee must notify the Secretary of State in writing if the licensee changes the financial institution it uses to maintain the segregated checking or savings accounts or if the licensee closes an account or starts a new account.

10.2.3 Accounting for prizes and payouts. The licensee must maintain prize and payout records on forms prescribed or approved by the Secretary of State covering each occasion, bar and club room sales, and each raffle. The licensee must retain the records for a period of two years following the calendar year in which bingo, pull tabs or raffles were conducted. The records must disclose the following information:

- (a) The amount of the prizes paid to winners in cash or in merchandise for each bingo game at each occasion;
- (b) The amount of the prizes paid to all pull tab winners at each occasion and bar and club room;

- (c) The amount of prizes paid to raffle winners for each raffle conducted; and
- (d) The cost of all merchandise given as prizes in any bingo game, pull tab game, or raffle.

10.2.4 Records. The licensee must maintain administrative records on forms prescribed or approved by the Secretary of State covering each occasion, bar and club room sales, and each raffle. The licensee must retain the records for a period of two years following the calendar year in which bingo, pull tabs or raffles were conducted. The records must disclose the following information:

- (a) The name and signature (as may be required by the Secretary of State's form) of each games manager for the licensee at each bingo occasion, bar and club room or raffle; and
- (b) The full name of each member working the occasion.

10.2.5 Availability of records. The licensee must have available on its premises all required daily records for the current quarter and the immediately preceding quarter on forms prescribed or approved by the Secretary of State. A licensee must be able to print records maintained on a computer upon request of the Secretary of State or authorized representative.

10.2.6 Pull tab records. Each licensee that sells pull tabs must record sales and prize payout information on forms prescribed or approved by the Secretary of State, including a current summary of such sales. The licensee must retain the records for a period of two years. The licensee must maintain the records for the current and immediately preceding quarter on the premises where the pull tabs are sold and must make them available to the Secretary of State or authorized representatives upon request.

10.2.7 Submission of bank statements to the Secretary of State. Any licensee that surrenders its license, has had its license suspended or revoked, or, for whatever reason, ceases to conduct charitable gaming activities after it has opened a segregated bingo-raffle checking or savings account, or both, must send a copy of the bank statement for each account to the Secretary of State within 30 days after the licensee ceased operations.

10.3 Allowable expenses limitations

10.3.1 Bookkeeper. A licensee must not pay more than \$200 per occasion for bookkeeper or accountant services. The licensee must notify the Secretary of State in writing, signed by an officer of the licensee, if the licensee remunerates its games manager for performing bookkeeping or accounting services.

10.3.2 Security

- (a) A bingo-raffle licensee must not pay more than \$400 per occasion for security unless:
 - (1) Security is provided by one or more off-duty law enforcement officers; or
 - (2) The occasion requires additional security, for example, a large number of people or large amount of money will be present on the premises.
- (b) If a bingo-raffle licensee uses off-duty law enforcement officers, the licensee must notify the Secretary of State and list the names and badge numbers of those officers who perform security duties before paying more than \$400 per occasion.
- (c) If a bingo-raffle licensee uses security other than off-duty law enforcement officers, and payment will exceed \$400 for a single occasion, the licensee must notify the Secretary of State and provide a reason for the increase before making the payment.

10.3.3 Janitorial. A licensee must not pay more than \$200 per occasion for janitorial services. The licensee may only pay for janitorial services in facilities owned by the licensee or in its sole control, or which it uses rent-free.

10.3.4 Advertising. A licensee must not pay more than the amount customarily charged by the medium used for advertisements of the same size and duration of publication.

10.3.5 Call fulfillment center. A licensee may pay a reasonable amount to contract a call fulfillment center for call reception and data entry only. All activities of the call fulfillment center must comply with Rule 8.1.1(e).

10.3.6 Legal services. A licensee may only pay for legal services directly related to an administrative action brought by the Secretary of State or the Colorado Department of Law or for legal advice relating to the interpretation of the Bingo and Raffles Law or these rules.

Rule 11. Rental Agreements

11.1 General

11.1.1 License required. A licensee may only rent premises from landlords licensed by the Secretary of State.

11.1.2 Lease fees

- (a) The rental fee may only cover the expenses reasonably necessary for the use of the premises for the occasion, plus any expenses related to landlord sponsored promotions.
- (b) Rental agreements must not specify any fee that the licensee must charge for a player's right to participate in any games of chance conducted during a bingo occasion.
- (c) A licensee must not conduct any activity under the Bingo and Raffles law if the lease, rent, contract or any other arrangement under which the rights to use the premises for the conduct of the activity is based on a percentage of receipts or profits derived from such licensed activities.

11.2 Termination

11.2.1 Termination by bingo-raffle licensee. A licensee may terminate a rental agreement upon at least two weeks' notice to the landlord licensee or upon the voluntary cessation of bingo-raffle operations by the licensee or suspension or revocation of the licensee's license by the Secretary of State.

11.2.2 Termination by landlord licensee. A landlord licensee may terminate a rental agreement between the landlord licensee and any bingo-raffle license by giving at least two weeks' notice to the licensee or upon failure of the licensee to make payment for at least three bingo occasions.

Rule 12. Landlord Licensees

12.1 Application

12.1.1 Forms. A landlord license applicant must use the forms prescribed and provided by the Secretary of State.

12.1.2 Fees. The fee established by the Secretary of State must accompany all applications for a landlord license. There is no proration of the annual license fee.

12.1.3 Duration. A landlord license is issued for a period of one calendar year (January through December).

12.2 Lease agreements

12.2.1 Copy to Secretary of State. A landlord licensee must submit an executed copy of the rental agreement between the landlord licensee and each licensee to the Secretary of State before the conduct of any games of chance on the licensed premises.

- 12.2.2 Equipment lease. If a landlord licensee provides equipment on the licensed premises and the licensee has agreed to the use of the equipment, the landlord licensee must submit an executed copy of the equipment agreement between the landlord licensee and each licensee to the Secretary of State before the conduct of any games of chance in or on the licensed premises.
- 12.2.3 Substitutions. A landlord licensee may negotiate with a licensee to have the licensee operate a bingo-raffle occasion that was not provided in the original rental agreement between the landlord licensee and the licensee. The landlord licensee must submit an executed copy of the rental agreement to the Secretary of State within five business days of the date of the substituted occasion.
- 12.3 Promotions. A landlord licensee may award a prize of merchandise, services, or cash in a promotion that does not exceed \$10,000. A landlord licensee must not require participation by any licensee, and the landlord licensee must not require payment in excess of \$1,000 from any licensee that agrees to participate in the promotion.
- 12.4 Assistance with licensee games. A landlord licensee and its employees must not assist a licensee in the conduct or operation of games of chance. This assistance includes but is not limited to:
 - 12.4.1 Acting as a caller;
 - 12.4.2 Selling bingo packs, sheets or electronic bingo aid devices;
 - 12.4.3 Acting as a floor worker;
 - 12.4.4 Operating a bingo computer aid system other than instructing a licensee on its use and maintenance; and
 - 12.4.5 Providing bookkeeping or accounting services to a licensee.
- 12.5 Prohibited activities
 - 12.5.1 A landlord licensee must not require any licensee that operates games of chance on the premises to adopt a specific set of occasion rules.
 - 12.5.2 A landlord licensee must not require, coerce or induce a licensee to purchase supplies from a specific supplier as a condition of rental of the premises.
 - 12.5.3 A landlord licensee must not require, coerce or induce a licensee to charge players a set pack price, admission to the premises, or other fee as a condition of rental of the premises.

- 12.5.4 A landlord licensee must not require, coerce or induce a licensee to conduct a set number of bingo games during an occasion or set a minimum prize amount per game or occasion as a condition of rental of the premises.

Rule 13. Manufacturer and Supplier Licensees

13.1 Application

- 13.1.1 Forms. A manufacturer's or supplier's license applicant must use the forms prescribed by the Secretary of State.
- 13.1.2 Fees. The fee established by the Secretary of State must accompany all applications for a manufacturer's or supplier's license. There is no proration of the annual license fee.
- 13.1.3 Duration. A manufacturer's or supplier's license is issued for a 12-month period commencing April 1 and ending March 31 of the following calendar year.
- 13.1.4 Software manufacturers. Companies that produce bingo, pull tab, or raffle software must hold a manufacturer's license and comply with all statutes and rules pertaining to bingo-raffle manufacturers in Colorado.

13.2 Authorized sales

- 13.2.1 Licensed purchasers. A licensed manufacturer or supplier may sell supplies and equipment only to licensed licensees.
- 13.2.2 Financial terms. A licensed manufacturer or supplier may sell supplies and equipment to licensed bingo-raffle licensees for cash or on terms agreed to between the licensed manufacturer or supplier and the licensee, but the duration of the agreement may not exceed 60 days.

13.3 Delinquent accounts. If a licensee's account with a manufacturer or supplier is more than 60 days past due, then:

- 13.3.1 The manufacturer or supplier must report to the Secretary of State by the tenth day of each month the name of the licensee whose account is in arrears.
- 13.3.2 The Secretary of State will notify all licensed manufacturers, suppliers, suppliers' agents, and the licensee that, until further notice from the Secretary of State, all sales of bingo supplies and equipment to the delinquent licensee must be on a cash-only basis.

- 13.3.3 No manufacturer, supplier, or supplier's agent may extend credit to the delinquent licensee until the Secretary of State approves, in writing, credit sales to the licensee.
- 13.4 Discontinued pull tabs. A licensed manufacturer or supplier that sells progressive pull tab games to any licensee may discontinue distribution or production of specific progressive pull tab games if:
- 13.4.1 The licensed manufacturer or supplier provides at least 60 days written notice to the Secretary of State and to all licensees that have purchased the pull tab game from the manufacturer or supplier within the previous 12 months. The notice must state that the manufacturer or supplier intends to discontinue the distribution or manufacture of the progressive pull tab game on a specified future date that is at least 60 days after notice is received by the Secretary of State; and
- 13.4.2 The manufacturer or supplier maintains a sufficient inventory of pull tab deals for that progressive pull tab game to ensure that all licensees that have purchased the game within the previous 12 months can close the game by awarding a jackpot.

Rule 14. Electronic Devices used as Bingo Aids and Bingo Aid Computer Systems Manufacturers and Supplier Requirements

14.1 General

- 14.1.1 Application for approval. Any Colorado licensed manufacturer of an electronic bingo aid device and computer system may apply for a letter ruling in accordance with section 24-21-605(1)(d), C.R.S., by submitting a written request to the Secretary of State. The request must include:
- (a) The manufacturer's name, license number, address, telephone and fax numbers, and an email address;
 - (b) The make, model and description of the bingo aid device and computer system for which approval is sought;
 - (c) The name and specific contact information of the manufacturer's representative who is an expert on the construction, programming, and operation of the device and system;
 - (d) A complete user's manual of the bingo aid device or system;
 - (e) Either a working prototype or a location in Colorado where the manufacturer can demonstrate the prototype;
 - (f) An affirmation from the manufacturer stating that the manual and prototype submitted to the Secretary of State do not differ materially

from the manual, device and system that will be distributed in Colorado after approval of the prototype;

- (g) In the case of a bingo aid device, a verified certificate from the manufacturer stating that the device meets all the standards set forth in section 24-21-618(8)(a)(II)(A) through (D), C.R.S., and that the device can and will be restricted to allow the play of no more than 54 faces per bingo game;
- (h) In the case of a bingo aid computer system, a verified manufacturer's certificate stating that:
 - (1) The system meets all the requirements set forth in section 24-21-618(9), C.R.S.; and
 - (2) The system, if constructed or intended for more than one licensee's use, can:
 - (A) Clearly identify each user's data;
 - (B) Segregate and secure each user's data from others' access; and
 - (C) Restrict access to each user's data through a unique user identification and password, smart card, token, or other method that limits access solely to the unique identifier's bearer, the Secretary of State and the manufacturer.

14.1.2 Letter ruling. The Secretary of State will issue a letter ruling within 45 days after receipt of the letter ruling request complete with all attachments required by these rules.

14.1.3 Authorization required. A manufacturer or supplier licensee must not distribute any electronic bingo aid device or bingo aid computer system that differs materially in construction, hardware, software, or operation from a previously approved device or system until the Secretary of State approves the differing device or system. A manufacturer or supplier does not have to request authorization for nonfunctional differences in a device or system, including but not limited to, changes in screen appearance, case color or size, or power supply.

14.2 Agreements with bingo-raffle licensees. Any contract or agreement between a manufacturer, supplier, or agent and a bingo-raffle licensee concerning the rental, lease or use of any bingo aid device or bingo aid computer system are subject to the following:

14.2.1 Initial term. The initial term and any subsequent term of the contract or agreement must not exceed one year.

14.2.2 Extensions. The contract or agreement may be extended only upon the written affirmative consent of the licensee.

14.2.3 Termination. The contract may be terminated if:

- (a) The licensee ceases bingo-raffle operations;
- (b) The Secretary of State suspends or revokes the license of the licensee; or
- (c) The licensee gives the other party to the contract or agreement written notice at least 30 days in advance of the licensee's intention to terminate the contract.

14.3 Secretary of State powers

14.3.1 Violation of law. The Secretary of State, in addition to or in lieu of any other penalties or corrective actions, may restrict or prohibit the use of any electronic bingo aid device or computer system that violates any provision of law or these rules.

14.3.2 Access and audit

- (a) Upon request, a manufacturer, supplier, or agent of a bingo aid computer system must grant the Secretary of State access to all systems in use within the state. The Secretary of State will use this access to audit any system and verify that the system is operated in compliance with the law and rules regulating bingo aid computer systems.
- (b) Independent testing
 - (1) Upon initiating an audit, the Secretary of State may require the manufacturer to submit any electronic bingo aid device, bingo aid computer system, random number generator, or the operating software of any electronic bingo aid device, bingo computer system, or random number generator for testing by an independent testing facility. Testing is at the manufacturer's expense and the Secretary of State will specify the independent testing facility.
 - (2) The Secretary of State, in consultation with the independent testing facility, will determine if the electronic bingo aid device and software is operating in compliance with the requirements and restrictions of applicable laws and rules.

- (c) If the Secretary of State requests access to a particular system and the manufacturer, supplier or agent does not comply, the manufacturer, supplier and agent are prohibited from allowing a licensee to use the bingo aid computer system until authorized by the Secretary of State.

14.4 Random number generators. Any manufacturer or supplier that intends to sell or lease bingo equipment that generates numbers electronically must submit the following to the Secretary of State before the sale or lease of such equipment to licensees:

14.4.1 An operator's manual for the model or models intended for sale or lease;

14.4.2 Technical specifications for the model or models to be sold or leased that describe the method and algorithm of randomly generating numbers, along with the method used to ensure that duplicate numbers cannot be called;

14.4.3 Letters of authorization regarding the sale, lease, use or restrictions on use for each state in which the model or models is currently being sold, leased or otherwise used; and

14.4.4 Upon request of the Secretary of State, a working model capable of demonstrating play or a location where such equipment can be demonstrated to the Secretary of State.

Rule 15. Fines

15.1 General. The schedule of fines provided in this rule applies to any violation of the Bingo and Raffles Law or rules for which the Secretary of State elects to impose an administrative fine.

15.2 Class 1 violations. A Class 1 violation is a willful act that is specifically prohibited by statute or rule and does, may, or is intended to result directly in the profit or enrichment of the violator or any person associated with the violator.

15.2.1 The fine for a Class 1 violation is \$175.

15.2.2 Class 1 violations include, but are not limited to:

- (a) Employing a device, scheme, or artifice to defraud or deceive in connection with any charitable gaming activity;
- (b) Engaging in an act, practice, or conduct that constitutes fraud or deceit, including any intentional misstatement of fact, in charitable gaming operations;

- (c) Transferring any license issued in accordance with the Colorado Bingo and Raffles Law;
- (d) Authorizing or permitting any person other than active member of a licensee to assist in the management or operation of games of chance;
- (e) Conducting more than 220 bingo occasions in one calendar year under color of a single bingo-raffle license;
- (f) Possessing, using, selling, offering for sale or putting into play any computerized or electro-mechanical facsimile of a pull tab game, any pull tab game not purchased from a licensed supplier and accompanied by a complete supplier's invoice; any pull tab game that is marked, altered, tampered with, commingled or known to be defective; any pull tab game in any unlicensed premises, other than the licensee's own premises; or any pull tab game that does not conform to the definitions and requirements of the Bingo and Raffles Law;
- (g) Permitting any person under the age of eighteen to purchase the opportunity to participate in a game of chance;
- (h) Allowing any person other than a licensee's owner, officer, director, member, shareholder of more than 10% of the licensee's ownership interests, or licensed agent to represent a supplier, manufacturer or landlord licensee with regard to any Colorado transaction;
- (i) Buying, selling, receiving, furnishing, or distributing games of chance equipment to any person in Colorado other than a licensee, a supplier licensee and its licensed agents, or a manufacturer licensee;
- (j) Filing any falsified and/or materially misleading renewal application or quarterly financial statement;
- (k) Authorizing, permitting, or receiving any remuneration or inurement for participating in the management or operation of a licensed game of chance; and
- (l) Requiring, inducing or coercing a licensee to enter into any agreement contrary to the Bingo and Raffles Law, or to purchase supplies or equipment from a particular supplier as a condition of conducting games of chance at a commercial bingo facility.

15.3 Class 2 violations. A Class 2 violation is a willful act that is specifically prohibited by statute or rule and is not intended to and does not directly result in the profit or enrichment of the violator.

15.3.1 The fine for a Class 2 violation is \$125.

15.3.2 Class 2 violations include:

- (a) Using bingo or pull tab equipment that is not owned or leased by a landlord licensee or owned or leased by a licensee;
- (b) Paying other than reasonable, bona fide, lawful expenses in connection with the conduct of licensed games of chance, purchasing games of chance prizes or equipment at prices exceeding reasonable and usual amounts, or other use of games of chance proceeds for other than the lawful purposes of the licensee;
- (c) Converting into or redeeming for cash any bingo merchandise prizes;
- (d) Offering or giving any alcoholic beverage as a prize in a licensed game of chance;
- (e) Giving, receiving, authorizing, or permitting the assistance in the conduct of games of chance of any person disqualified or prohibited by statute or rule from rendering such assistance;
- (f) Offering or giving any bingo door prizes or jackpot prizes exceeding the statutory maximum amounts set for prizes;
- (g) Reserving or setting aside bingo cards or pull tabs for use by players, except as authorized in section 24-21-618(3)(d), C.R.S., or, except as authorized by these rules, reserving or allowing to be reserved any seat or playing space for use by players;
- (h) Drawing a check on a bingo-raffle account payable to "cash" or to a fictitious payee;
- (i) Authorizing or allowing the play of bingo by a person not present on the premises where the game is conducted, or the play of any game of chance on credit, or without collecting the consideration required in full and in advance; and
- (j) Engaging in any act, practice or conduct described as a Class 1 violation in Rule 15.2, or that would otherwise be a Class 1 violation, when the act or conduct is not intended to and does not directly result in the profit, inurement or remuneration of the violator.

15.4 Class 3 violations. A Class 3 violation is one that occurs when a licensee omits, fails or neglects to comply with a requirement set forth in the statutes or rules, but that does not involve the affirmative performance of an act specifically prohibited

by statute or rule. Class 3 violations are deemed negligent rather than willful, unless a specific violation is repeated within a two-year period or the facts of the violation show that the violator knowingly and deliberately failed or refused to comply with a requirement or standard set by statute or rule.

15.4.1 The fine for a Class 3 violation is \$50 unless the violation is repeated or knowing and deliberate, in which case the fine is \$75.

15.4.2 Class 3 violations include, but are not limited to:

- (a) Neglecting to display a license or other document at a time and place where display is required;
- (b) Failing to file with the Secretary of State any quarterly report, administrative fee, or rental or other document at the time required for the filing, or omitting required information on such a filing;
- (c) Failing to keep or furnish required records in connection with any licensed activity;
- (d) Omitting any required procedure in the conduct of bingo-raffle activities;
- (e) Failing to designate an officer responsible for the use of games of chance proceeds;
- (f) Neglecting to have a certified games manager present continuously during the conduct of any raffle or bingo occasion and for thirty minutes after the last game in an occasion;
- (g) Failing to have games of chance premises or equipment open or available for inspection by the Secretary of State or police officers;
- (h) Failing to deposit or maintain all games of chance receipts in a special segregated checking or savings account of the licensee, or to withdraw any funds expended from such account by means of consecutively numbered checks or withdrawal slips signed by an officer or officers of the licensee and showing the payee and a description of reason for the payment for which the check or withdrawal slip is made, or by electronic funds transfer;
- (i) Failing to submit the required administrative fee, or a portion thereof, at the time of filing a required quarterly financial report;
- (j) Neglecting to give required notice of the termination of a rental agreement or the cancellation of a bingo occasion; and

- (k) Omitting required information from a raffle ticket, if the ticket has been offered for sale or sold without the approval of the Secretary of State.

15.5 Citations

15.5.1 Issuance. The Secretary of State will issue all citations in writing, signed and dated by the authorized agent of the Secretary of State and will identify the licensee cited; the facts and/or conduct constituting the violation; the specific rule or statutory provision violated; and the fine assessed in accordance with this rule and the Bingo and Raffles Law.

15.5.2 Delivery. Citations may be delivered to the cited licensee, to the attention of its games manager, games managers, officer or officers on record in the files of the Secretary of State, either personally or by first class mail.

15.5.3 Suspension or reduction of fine. The Secretary of State, for good cause shown, may suspend or reduce any fine imposed in accordance with this rule. Requests for fine suspensions or reductions must be in writing, must be received by the Secretary of State within 20 days of the date of the citation, and must state and document with particularity the facts, circumstances and arguments supporting the request.

15.5.4 Referral to law enforcement. Irrespective of whether a citation was issued, the Secretary of State reserves the right to refer any violation to a law enforcement agency.

15.6 Hearings, payment of fines, and collections

15.6.1 Request for hearing. In accordance with section 24-21-605(1)(a)(II), C.R.S., a licensee may request a hearing before an administrative law judge to appeal the imposition of a fine. The Secretary of State must receive a written request for a hearing within 20 days of the date that the Secretary of State denied a fine suspension or reduction request.

15.6.2 Payment of fines

- (a) If a licensee does not request a fine suspension, fine reduction, or hearing before an administrative law judge, then the licensee must pay within 20 days of the date of the citation imposing the fine.
- (b) If the Secretary of State denies a fine suspension request or grants a reduction request, then the licensee must pay the fine or reduced fine within 20 days of the date of the notice of denial or reduction.
- (c) If an administrative law judge denies an appeal of a fine, then the licensee must pay the appealed fine within 20 days of the date of the issuance of the administrative law judge's order.

- (d) A licensee must pay fines by check or money order, payable to the Colorado Secretary of State.

Editor's Notes

History

Emer. rules 4.0, 8.0, 13.0, 16.0, eff. 04/30/2008.

Rules 4.0 through 9.0, 13.0, 16.0 eff. 07/30/2008.

Rules 2.0(B), 2.0(V), 5.0(A.1), 9.0(E.5) eff. 05/16/2010.

Rules 2.0(S, V), 5.0(A.1), 9.0(E.5 – F) eff. 09/14/2011.

Entire rule eff. 03/30/2013.

Rules 2.1.1, 2.3.2, 3.2.1(g), 3.2.2, 3.2.4 – 3.2.5, 3.2.11, 3.2.13, 3.4.2, 4.4, 5.1.8, 5.2.10 – 5.2.11, 5.4.11, 8.1.7, 8.4 – 8.5, 9.2.3, 9.3.3(a) – 9.3.3(b), 10.1.2 – 10.1.3, 10.3.1 – 10.3.3, 15.5.1, 15.5.4, 15.6 eff. 01/01/2014.

Rules 1, 2.3.1, 2.4.3, 2.4.4(c), 3.2.3(b), 4.1.1(a)(2), 4.1.2 – 4.1.5, 4.2.2, 5.3.2, 5.4.3, 7.1.1, 8.1.4 – 8.1.6, 8.1.8, 8.4.1(b)(2), 8.4.2–8.4.7, 9.3.2, 14.1.1, 15.3.2 eff. 08/14/2014. Rule 3.2.16 repealed eff. 08/14/2014.

Rules 1.9, 1.15.2, 2.4.4, 2.5, 3.1.11, 3.4, 4.1.1, 6.4.2, 7.1.1, 8.5, 10.1.3(a), 14.1.1, 15.3.2(g), 15.6.1 emer. rules eff. 06/14/2017.

Rules 1.9, 1.15.2, 2.4.4, 2.5, 3.1.11, 3.4, 4.1.1, 6.4.2, 7.1.1, 8.5, 10.1.3(a), 14.1.1, 15.3.2(g), 15.6.1 eff. 09/30/2017.

Rules 3.1.5(b), 3.1.5(d), 5.4.1, 5.4.3, 8.4.1, 8.4.2 eff. 11/01/2021. Rule 15.6.3 repealed eff. 11/01/2021.

Rules 1.1-1.21, 2.5.2, 3.1.10, 3.2.13, 4.1.4, 4.1.4(e), 5.1.5(a)(2), 5.1.7, 5.4.7, 6.1.2-6.1.4, 6.4.2, 8.4.1(b)(1)(i), 8.4.7, 9.1.1, 9.1.2, 10.1.2(a), 13.1.4 eff. 03/31/2023.

Rules 1, 2.1, 2.4.1, 2.4.4, 2.4.5, 2.5, 2.5.2, 3.1.2, 3.1.5(b), 3.1.7(b), 3.2, 3.3, 3.4.4, 4.1.4, 4.1.5, 4.2.3, 4.3.1, 5.3.3, 5.4.5, 5.4.7, 5.5, 6.2.3(b), 6.4.3, 8.1.1, 8.1.3, 8.2.1-8.2.3, 8.3.3, 8.3.4, 8.4.1, 8.4.5, 8.4.6, 9.1, 10.1.2, 10.1.3, 10.2.1, 10.2.4, 10.2.5, 10.2.7, 10.3, 12.2.1-12.2.3, 13.2.1, 13.2.2, 13.3, 13.4, 14.1.1, 14.4, 15.1-15.4 eff. 10/15/2024.